

NEGLIGENCE HANDOUT

Negligence is a tort constituted by the breach of a duty of care owed by the defendant to the plaintiff which results in the damage of the plaintiff.

INGREDIENTS

Duty of care owed by the defendant to the plaintiff
Breach of duty of care
Damage results to the plaintiff.

Until 1932, common law did not recognise a cause of action in negligence as it exists today. All there was an action on the case, which had developed to tame the harshness of the law of trespass. A plaintiff could only have an action in negligence where there was a contractual relationship between the plaintiff and the defendant.

In the case of *Donoghue v Stevenson*, the cause of action of negligence was propounded by Lord Atkin.

After reviewing the authorities on the question, he laid down the rule that

“A manufacturer of products which he sells in such a form as to show that he intends them to reach the ultimate consumer in the form in which they left with no reasonable possibility of intermediate examination, and with the knowledge that the absence of reasonable care in the preparation or putting up of the products will result in an injury to the consumers' life or property, owes a duty to the consumer to take reasonable care.”

The general principle was laid down by Atkin as he stated.

in English law there must be and is some general conception of relations, giving rise to a duty of care, of which the particular cases found in the books are but instances. The liability for negligence whether you style it such or treat it as in other systems as a species of " culpa " is no doubt based upon a general public sentiment of moral wrongdoing for which the offender must pay. But acts or omissions which any moral code would censure cannot in a practical world be treated so as to give a right to every person injured by them to demand relief. In this way rules of law arise which limit the range of complainants and the extent of their remedy.

He propounded the neighbour principle at page 550 to establish a duty of care.

The rule that you are to love your neighbour becomes in law you must not injure your neighbour; and the lawyer's question " Who is my ' neighbour?" receives a restricted reply. You must take reasonable care to

avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who then in law is my neighbour? The answer seems to be persons who are so closely and

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directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question.

The case of *Donogue v Stevenson*, is important in the sense that it establishes the concept of negligence which is not an abstract notion of carelessness but a question of legal duty. The duty is not established by contract or fiduciary relationship as in the era preceding *Donogue v Stevenson* but based on a duty of care created by law.

Question of duty of care

The question of whether a duty of care exists or not in a particular set of facts is a question of law,

Donogue v Stevenson, the duty was owed to the ultimate consumer by the manufacturer because of the fact that there was no possibility of inspection by the distributor or consumer.

A similar situation presents itself in the case of *Mwananchi Service Station v Minga 1973* where the landlord's house was damaged by fire as a result of defective nature of petroleum products supplied to his tenants. The defendants supplied petroleum products to a service station which included kerosene. The kerosene was adulterated which resulted into fire.

The manufacturer was **held** liable on ground that he owed a duty of care to the ultimate consumer to ensure that the fuel products were not defective. In this case it was held to be foreseeable that the plaintiff would suffer damage as a result of defects in their products. The court of Tanzania pointed out that kerosene was a household product widely used in Tanzania and such damage was foreseeable. The difficulty in the decision lies in the holding the service station liable and yet there was no possibility of intermediate inspection.

In Uganda, the liability is not practical. Uganda is an import economy. It imports most of the products. The manufacturers are outside the jurisdiction. Ugandans are therefore consumers of used goods. So a lot happens between the manufacturer and the consumer.

In Uganda it is not practicable as a matter of evidence. Few people can even think of keeping some kerosene for examination.

Edward Ssendi v Century Bottling Company.

In **Grant vs Australia Knitting Mills** the defendant manufactured underwear. On one occasion they produced 4,737,600 of which the plaintiff purchased when she wore it she developed dermatitis, which resulted in gentle malfunctioning.

The court **held** that the duty of care was absolute and although all the others were not defective the fact that one was defective was enough to establish a cause of action.

The court did not take into account the fact that the plaintiff did not wash the underwear before wearing it. It contained excess sulphide.

In this case the duty of care is analogous to a duty of guarantee but it is as of necessity subject to the standard of reasonableness.

The nature of the duty of care.



The existence of a duty of care is an essential ingredient of negligence. Duty of care refers to the circumstances and relationships which the law recognises as giving rise to a legal duty to take care. A failure to take such care can result in the defendant being liable to pay damages to a party who is injured or suffers loss as a result of their breach of duty of care. Therefore it is necessary for the claimant to establish that the defendant owed them a duty of care. Whether or not one owes a duty of care to another is a question of law. This duty must also be owed to the plaintiff. A person cannot take advantage of a duty that is owed to another.

The existence of a duty of care for personal injury and property damage was originally decided by Lord Atkin's neighbour test from *Donoghue v Stevenson*. Lord Atkin in this case stated that;

The rule that you are to love your neighbour becomes in law you must not injure your neighbour; and the lawyer's question "Who is my 'neighbour?'" receives a restricted reply. **You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour.** Who then in law is my neighbour? The answer seems to be persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question.

The duty therefore is the duty to take reasonable care not to injure your neighbour.

The neighbour test for establishing a duty of care can be broken down into two requirements.

- i. Reasonable foresight of harm.
- ii. A relationship of proximity.

Foreseeability determines whether a duty of care exists. Application of reasonable foresight in establishing a duty of care was considered in *Topp v London Country Bus* and *Bourhill v Young*.

Topp v London Country Bus (1993) 1 WLR 976

The defendant bus company left a mini bus in a lay overnight. It was unlocked and the keys left in the ignition. The driver who was expected to pick the bus did not turn up for his shift. Thieves stole the bus and drove it away. Unfortunately, the bus knocked a woman off her bicycle and killed her. Her husband brought an

action in negligence to recover damages.

Held; the bus company did not owe a duty of care for the acts of the third party. It was not foreseeable that thieves would take the bus and run a woman off her bicycle.

Bourhill vs young



The duty of care may be owed to one person and not the other.

Namyalo vs Ratanshi

Sheridan j

“I think that decision must be distinguished from a rarely blind man in Uganda, crossing the road unaccompanied and without the use of the stick. In England a driver would be alerted by a person tapping his way with a white stick or led by a guide dog. It is a custom in East Africa for a blind persons to go about accompanied by a member of the family often a child. Here the deceased was alone. The driver was unable to take any of the precautions referred to in Haley’s case., as he had no means of knowing that the deceased was blind.

Haley vs London Electricity Broad

Relied on the *Glasgow Corporation v Taylor* p.50

Qualcast v Haynes.

A duty of care may also be established by a statute.

Juma Asite vs Nytil Ltd.

Acid in a baker

Workmen

cooperation

Duties and powers under public law do not translate into duties in negligence. The duty of care in negligence is achieved in the principle of foreseeability.

BREACH OF DUTY

The plaintiff must establish by evidence that the defendant breached the duty of care owed to them to succeed in an action in negligence. The question of whether the duty of care has been breached or not is a question of fact to be decided according to the peculiar circumstances of the case.

The court applies the standard of the reasonable man in establishing whether there has been breach of the duty of care or not.

Negligence was defined in the case of *Blyth Vs Birmingham water works (1856) 11 EX 781* as;

“The Omission to do something which a reasonable man, guided upon those considerations which ordinarily regulate the conduct of human affairs, would do, or doing something which a prudent and reasonable man would not do”.

The defendant might have been liable for negligence, if, unintentionally, they omitted to do that which a reasonable man would have done, or did that which a person taking reasonable precaution would not have done.

Catlsan v Choclinov 1947



“ The ideal of that person exists only in the minds of men, and exists in the different forms in the minds of different men. The standard is therefore far from fixed as stable. But it is the best all round guide that the law can devise.

The test of the reasonable man depends on the practical values of the situation:

- The magnitude of the risk imposed. The bigger the risk the wider the duty;
- The probability of the accident. Bolton vs stone;
- The gravity of the consequence; and,
- The cost and the practicability of preventive measures

General Cleaning Contractors Vs Crane Christmas

Complainant argued that the defendants could have provided a system of work by providing ladder.

Bolton vs stone 94

Kaggwa vs AG

The plaintiff was injured while in Butabika Hospital.

It was too expensive to install safety measures to protect lunatics.

PRODUCT LIABILITY

The case of *DONOGUE v Stevenson* established the principle of foreseeability of damage to the public as a result of defective manufacturing. In that case, the plaintiff sued in respect of shock sustained as a result of consuming ginger beer, which contained the remains of a decomposing snail. The plaintiff had not purchased the article of drink from the distributor but a friend had purchased it. Therefore there was no question of contractual relationship or other legally recognised legal relationship

The House of Lords (lords Atkins laid down the general principle of foreseeability of damage in such cases at p.599

“A manufacturer of products which he sells in such a form as to show that he intends them to reach the ultimate consumer in the form in which they left with no reasonable possibility of intermediate examination, and with the knowledge that the absence of reasonable care in the preparation or putting up of the products will result in an injury to the consumers’ life or property, owes a duty to the consumer

to take reasonable care.”

This principle superseded any exemption clauses that may be put up by the manufacturer. The principle has been extended to all products of manufacture irrespective of type.



Clothing-Grant v

Australian Vehicles-

Herschtal v Stewart

The principle applies to products so well as their contractor but does not apply to products supplied other than in the cause of trade.

Although the principle was first applied to manufacturers its scope is far reaching. It applies to all situations where intermediate inspection is not possible. In *Haseldine Goddard LJ* said

“ where the facts show that no intermediate inspection is practicable or contemplated, a repairer of a chattel stands in no different position from that of a manufacturer and so owes a duty to a person who in ordinary course maybe expected to make use of the thing repaired.”

In that case a repairer of a lift was held liable for negligence where the repair was so unsatisfactory that the lift fell through the bottom of the shaft injuring a passenger.

Persons who are concerned with the distribution of particular products may be held liable on the principle laid down in *Donogue v Stevenson*. They have a duty of care to ultimate consumers to examine the products and ensure their safety.

In *Watson v Buckley*, a hair dye was distributed without any preliminary testing being made. The retailers were held liable to a customer who got injured as a result of treating his hair with it.

In *Kubach v Hollands* a seller of chemicals was held liable in negligence for failure to test the chemicals he sold as instructed by the manufacturer which resulted in injury to a third party.

In *Herschtal v Stewart* a seller of a second hand car was held liable for failure to inspect it and disclose faults to the buyer.

Certification bodies may not be held liable unless they have assumed a duty of care in respect of the safety of the products.

The Nicholas H.

Any person who suffers injury as a result of the negligence of the defendant may sue. However, it should be noted that the principle in *Donogoe v Stevenson* only applies to physical damage e.g. personal injuries or injury property. In *Simaan General Contracting v Pilkington (1988) 1 ALL ER 793*, the court held that a plaintiff could not recover damages in respect of financial loss, which resulted from the supply of defective products.



- Construction of banks
- Class of wrong colour.

There are difficulties that arise where the defects in the products supplied cause damage to other party or to the product itself.

Aswan Engineering v Lupdine: Plaintiff brought plastic –pails which melted Kuwait sun.

The defendant's duty is to only take reasonable care and the plaintiff must prove negligence and not direct defectiveness of the product. He may rely on *Res Ipsa Loquitur*. The defect alleged must be of such a nature, as shows want of care on the part of the defendant. Where the product is inherently dangerous, failure to warn of the inherent dangers is negligence.

The burden of proof is on the plaintiff to prove causation. The plaintiff must prove that it is the defendant's negligence and not that of any other party that caused their injury. In *Donogue v Stevenson* Lord Mcmillan said at p. 622

"I can readily conceive that where a manufacturer has parted with his product and it has passed into other hands it may well be exposed to vicissitude, which may render it defective or noxious. It may be a good general rule to regard responsibility as ceasing when control ceases. So also, where between the manufacturer and the user there is interposed a party who has the means and opportunity of examining the manufacturer's product before he reissues it to the actual user..the intervention of any extension agency is the court concerned with the probability of examination."

Griffiths v Arch Engineering the defendants hired out a defective grinding wheel to a firm of contractors who allowed the plaintiff, their employee, to use it and his hand was injured.

The plaintiff succeeded against the defendants on the ground that possibility of examination was not enough. Where there is no reasonable possibility of examination then the defendant cannot escape liability.

CAUSATION AND REMOTENESS OF DAMAGE

Besides proving the existence of a duty of care and breach of the same, the plaintiff must prove that damage resulted from the breach of duty by the defendant.

The two hurdles to surmount at this stage;

1. The plaintiff must establish that the damages are as a result of the actions of the defendant;



2. That they are of a nature that is recoverable

CAUSATION

This involves establishing that the act of the defendant was the cause of the damage. In essence, the plaintiff must establish that the damage would not have occurred “but for” the act of the defendant. He must establish a situation where no damage would have occurred if it had not been for the conduct of the defendant.

This is a negative and exclusionary test which cannot positively establish the cause of the accident or damage.

It cannot be conclusive because;

1. In certain cases it may only establish an endless chain of causes,
2. It can only eliminate some causes,
3. It is always a hypothetical test.

Barnett v Chelsea Hospital

Two night watchmen fell ill after taking tea. They went to the nearest hospital and the nurse called casualty. The doctor did not come and the patients died. He was sued in negligence. The court found that the watchmen died of excessive poisoning and would have died even if the doctor had come in time and administered treatment.

The doctor argued successfully that by the time the men would have been examined and the nature of poisoning established the men would be dead. In this case, the “but for” case test established that although the doctor was negligent, his negligence was not the cause of the men’s death. This exposes the flaws of the theory, which is basically hypothetical. It is necessary but not conclusive.

Qualcast v Haynes

Whether the fact that the employers did not urge him to put on the spare and strong boots provided by them was the sole cause of the accident. It was argued successfully that his experience as moulder was not sufficient to expose him to the necessity of protection, no amount of urging or encouragement would have made him wear them. Therefore, even though the defendants were in breach of their duty of care in not encouraging the employee to wear the protective gear, their negligence was not the sole cause of his accident and consequent injury.

McWilliams v Sir William Arrol

An employee, who was employed as a stall builder fell while on duty and died. His widow sued the company in negligence on the ground that they did not provide safety belts for the deceased while he was at work.

The defendant denied liability. They adduced evidence to prove that the on earlier occasion they had provided safety belts and he had not worn them. They therefore, argued that even if they had provided the belts, he would not have worn them.

There was evidence that at the time of the accident, there were no safety belts at the site as they had been moved to another site two days earlier.

The court found that the defendants had been negligent in not providing safety belts considering the nature of the work they were engaged in. Nevertheless, they were not liable to



the widow because their negligence was not the sole cause of the accident, which caused the deceased's death.

The plaintiff must prove that the damages he suffered are actually

recoverable. Here there are two major considerations;

1. Directness of the defendant's action;
2. Foreseeability.

Re Polemis (1921) 3 KB 560

The plaintiff claimed damages for the destruction of a ship as a result of the negligence of the stevedores. The defendants argued that there was no way it could have been foreseen that a fire would result and therefore the damages were too remote to be recoverable. They argued that what was foreseeable was minor damage for example a crack but not ignition and total destruction of the ship.

HELD, the court held that the fire was a direct result of the negligence of the stevedores and as such was not too remote to be recoverable. The court stressed that foreseeability of a result goes to establish a duty of care and after establishing that duty of care, to determine which damages are recoverable, one had to apply the test of directness. In this particular case, the ignition of the fire was a direct result of the negligence of the stevedores who were the employees of the defendants. There was no intervening factor. The damages were therefore recoverable though not foreseeable.

The Wagon Mould 1961 AC388

The defendant argues that it was not foreseeable that the spoilt oil would catch fire and cause the damage that was actually caused.

The court agreed and overturned *Re Polemis* holding that what was foreseeable was the pollution of the water and not the fire as actually occurred. The defendants were therefore not liable in damages to the plaintiffs.

The court established that the principles of foreseeability rather than directness determine which damages are recoverable and which are too remote to be recoverable.

However, this principle does not apply to personal injuries. This is especially important in the eggshell case where the victims are usually susceptible to damage/injury.

Smith v Lech Brainco

Smith was employed as a galvaniser. He would deep the metal to be galvanised into a tank of molten liquid. In the process some metal spilt on him and he got burnt. He had worked in gas works for 9 months and was extremely susceptible to cancer.

He developed cancer and died

The court held that the holding in Wagon Mould did not apply to the case of personal injuries. In personal injury cases, the tortfeasor takes the victim as he finds him.

The court pointed out that what the Wagon Mould case had laid down was in respect to the nature of damage and not the extent of the damage. The court stressed that the defendants



would be liable for all the damage as long as its nature was foreseeable. They could not dispute the extent of the injury, which they are to be liable.

Hughes v Lord Advocate

An eight year old boy sustained on injuries as a result of a fire explosion. The defendants who were employees of the post office opened up a manhole and lifted it open in the evening with a shelter and lamp. The defendants disputed liability for the injuries on the ground that the explosion was not foreseeable. Court said that in order to establish the coherent chain of damage, you do not need to have foreseen the precise details of the danger. A lamp and a ladder were the kinds of things to attract the attention of children. A fire was foreseeable. It did not matter that an explosion happened instead of a small fire which would be foreseeable. It was enough that there was a foreseeable danger of burning or falling in.

The act of an independent third party may break the chain of causation and preclude recovery of damages.

In *Hughes v Lord Advocate*, the defendants argued unsuccessfully that the children were trespassers and broke the chain of causation. The court disagreed on the ground that they were perfectly foreseeable.

Thyssen v Wakiso Estates

The plaintiff was driving around at about 8.00 pm. There was a lorry parked on the side of the road unlit. It had reflectors but they were covered in mud. The plaintiff blinded by the light on coming traffic knocked the parked lorry and fell unconscious. People stole his money. He claimed negligence on the part of the person who parked the lorry. The court held that although the accident was foreseeable the robbery was not and it was a result of the act of an independent third party and the plaintiff could not recover.

Francis Kizza

He was wrongfully arrested and his goods were stolen.

The court held that it was foreseeable that his goods would be taken after his arrest. There are also cases where the plaintiffs are the cause of their injury.

Nantongo v Hival Mohammed

A petrol tank fell into a ditch. A large crowd gathered as they helped themselves to the fuel. It was set a light and the got injured. They could not recover damages.

Injuries in industries

Employer to be held
liable Workmen

Overseas Touring Co. V African Produce agency



INJURY WITHOUT IMPACT

This refers to psychological injury caused by the negligence of the defendant. The injury occurs as a result of the plaintiff witnessing what happens to the third parties and also oneself.

The treatment of plaintiffs in the field of tort law is very inconsistent.

- Courts are preoccupied with limiting the liability of tortfeasors
- Developments of science- psychiatric injury. Developments in this area were rather slow.

The science of the mind developed much later because capitalisation was more concerned with profitable aspects and not abstract issues like psychiatric injury.

Psychology was only relevant in explaining industrial relation and control.

In case of psychiatric injury the rules of foreseeability are not enough to ensure that the plaintiff recovers, they must satisfy other requirements.

It is accepted that injury does occur in the form of psychiatric injury as a result of negligence. In Uganda, it is hard to discern how the law would treat such cases as the law is only limited to theory but is hardly invoked.

Boourhill v Young

Remoteness of damage. The rules of foreseeability are applied to preclude the plaintiff from recovering.

Dulie v White

A lady suffered nervous shock when she saw a carriage being drawn heading for the bar where she was serving at the corner.

She feared for her own life because she thought that the carriage would crash into the bar where she was. As a result she suffered premature birth.

Court held that she could recover because the damage was foreseeable. The court also laid emphasis on the fact that she feared for her own safety and as a result suffered shock.

The case of ***Dooley v Cammel Laird*** extended the possibility of recovery to third parties as opposed to only fear of one's own safety.

King v Phillips

A car driver reversed his car and backed into a 2 year old boy on his bike. His mother who was 70-80 yards away sustained nervous shock. She had heard the son scream but had not seen him. He later returned home.

The court held that she could not recover because her damage or injury was not foreseeable.

Hambroke v Stokes



She apprehended fair injury to her children. There had been an accident and she had been told that a young girl with spectacles had been on the ground a description fitted her daughter. She died of shock and her husband sued;

Court established that victims could recover damages where the harm was in respect of close relatives;

The plaintiff could only recover where the injury was a result of danger perceived by the plaintiff's own senses.

Similar decision in *Boardman v Sanderson*

McLoughlin v O'Brien

Plaintiff must have perceived the danger with own unaided senses.

This case introduces the aspect of witnessing the aftermath of the accident as opposed to witnessing the actual accident.

It also lays down the rule that the plaintiff can recover even where they were a distance from the accident. In this case the plaintiff was two miles away but arrived and saw her relatives still covered in blood.

Court intimated that it would have been different if she had arrived at the hospital when they had been attended to and out of danger.

Jones v Wright

Accident at a football stadium

- Relationship with victims
- Means of perception
- Those who were at the scene
- Live TV broadcasts

Attia v British Gas

Involved injury to property but not to persons. The plaintiff who watched her house burn was able to recover.

RESCUE SITUATIONS

Tortious liability can arise where one person undertakes to rescue another from danger but does not fulfil the standard of a reasonable man.

The questions that can arise are whether a rescuer can recover damages for tortious liability if he is injured in the process of rescue from the tortious or the person he rescues.

In the 19th Century during capitalism, which promoted the ideology of laissez faire,

there was no duty on any one to help in a dangerous situation. (Public spirit did not translate into a duty of care under the law. There was generally no liability for omission but only for commissions)

Positive actions were left to parties in contract as that when the duty to act arose. There were various defences available to the original tortfeasor eg



- Actus novus
- Contributory negligence and
- Voluntary assumption of risk.

However, this position has changed under common law for various reasons but mainly on policy grounds to encourage rescuers.

In the case of ***Wagner v International Railway Cooperation***, Cardoso and held

“ Danger invited rescue. The cry of distress is the summons to relief the law does not ignore these reactions of the mind in tracing conduct to its consequences. It recognises them as normal. It places their efforts within the range of the natural and probable. The wrong that imperils life is wrong to the imperilled victim; it is a wrong also to the rescuer.”

The defendant in that case had argued that there was a break in the chain of causation and the cause of damage was the rescuers own action and not that of the defendants. Their reasoning was anchored on the fact that the rescuer had time to contemplate his actions and choose a course of action they agreed that it was not instinctive.

The court disagreed and held that it was one transaction and actions did not arise. As long as the injury to the victim was foreseeable the injury to the rescuer was also foreseeable.

Haynes v Harwood

The defendant left a house unattended in the street. Children threw stones at it and caused it to bolt. The plaintiff who was a policeman tried to stop it and got injured.

The court of appeal held that he could recover damages in respect of his injuries as the act of the children was reasonably foreseeable and so were his rescuer attempts.

Baker v Hopkins

The defendants defective system of work led to an accumulation of lethal gas in a well, which overwhelmed two workers. The plaintiff a doctor tried to rescue them and also succumbed. The court relied on the Wagner case to hold the defendants liable. In so far as the plaintiff action was reasonable attempt at rescue he was owed a duty of care.

A duty may be owed to a rescuer where it is not owed to the victim.

Videan v British Transport

The plaintiff was injured while attempting to rescue his young son who had trespassed on the railway line. The court held that the son was not owed a duty of care as he was a trespasser and was not foreseeable. The fact that the defendant's employee was negligent in driving the train did not translate into breach of a duty

of care as none was owed to him.

However, the plaintiff could recover, as injury to a potential rescuer was a reasonable and foreseeable consequence of the negligent driving by the defendant's employee.

It is immaterial that the injury to the rescuer is different from the injury to the victim.

Chadwick v British Railways Board



There was a railway collision as a result of the negligence of the defendants. The plaintiff who lived nearby participated in the rescue operation and suffered nervous shock.

Court held that he could recover in respect of the injury.

A rescuer may also recover damages in respect of injury occasioned to him in the process of rescue from a victim who imperils himself.

In *Harrison v British Railway Board*, Boreham J held that although a person owes no duty of care to potential rescuer if he endangers himself in such a way as to invite rescue.

Crossly v

Roshon Tripped

and fell ***Ogoro v***

Taylor

Rescue of property they could recover

A rescuer was owed a duty of care by an earlier rescuer who further endangered the victim. Increased danger.

However the causation of an earlier rescuer may break the chain of causation

In *McFarlane*, Stuart Smith LJ stated that if the captain of a vessel attempting to rescue survivors of the Piper Alpha Oil rig fire negligently and in breach of his duty took the vessel into a position of danger where those on board were injured he would be liable

The rescuer can only recover where the rescuer's attempt is reasonably foreseeable as attempting to rescue. Haynes- policeman has professional responsibility to rescue. Similarly in *Baker-Videan* parents

In a situation of disaster ordinary members of public are foreseeable as attempting to rescue

Ogoro v Taylor

The defendant who negligently started a fire in his house was held liable to a fireman who got injured in an attempt to put out the fire.

Contrast with ***Frost- A Chief Constable of South York Police***

Police American: fireman doctrine that a fireman cannot recover.

NEGLIGENT WORDS AND INDIRECT FINANCIAL LOSS

The law of contract treats liability for negligent misstatements differently from the law of Tort. In the law of Tort there was only liability for misstatements where there was fraud or recklessness, there was no recovery for mere negligence.

In *Derry v Peek* where the statements were not fraudulent the plaintiff could not recover any damages in respect of the resultant financial loss. There was no fiduciary or contractual relationship between the parties and as such he could not recover in contract either.



Nocton v Ashburton

Banbury v Bank of Montreal

Le livre v Gould

There was generally no liability in tort for negligent misstatements except where there was a fiduciary relationship. A fiduciary relationship is one of confidence and trust. It is unequal relationship where one party places trust and confidence in the other-advocate-client.

Ultramares Corp v Touche (1931) 174 NE

The defendant used to prepare accounts and balance sheets for a certain firm. The firm used them to raise finance. The defendants accountants knew or ought to have known that the balance sheets would be sent to finance companies for the purpose of raising finance although they did not know they would be sent to the plaintiffs in particular.

The firm's accounts were false. If the accountants had exercised due diligence and scrutinised the accounts they would have discovered the falsehoods but they did not. The firm went bankrupt after borrowing money from the plaintiff. The plaintiffs sued the defendant's accountant in negligence.

The court held that there was no liability for negligence. This was for policy reasons because it would place too large a burden on professionals. The court held that liability could only arise where there had been a fraudulent statement.

This same principle was applied in *Candler v Crane Christmas & co (1951) 1 ALL ER 426* except that here there was a dissenting judgement. In this case, the defendants prepared the accounts for the MD of a company. The defendants knew that the accounts were for a purpose of persuading the plaintiff to invest in the company. There was no contract between the plaintiffs and defendants in contemplations.

The plaintiffs sued the defendants when the company went into liquidation. It was held by the majority of judges that since there was no contract or fiduciary relationship between the defendants and the plaintiffs they could not recover damages for negligence.

Lord Denning expressed a contrary opinion that the person giving information owes a duty of care even to third parties who may rely on the information. This was based on the doctrine of foreseeability.

A duty of care exists in certain situations including professionals. The duty to take care in preparation of financial statements was also a duty owed to third parties whom the defendants knew would rely on the information then provided.

However, the duty does not extend to third parties. This basically covers persons

that the defendant cannot reasonably foresee would rely on the financial information he prepares. There is no liability for casual misstatements that could not reasonably be said to have been made with the intention of being relied on.

In this case Lord Denning sought to establish a special relationship between professionals making statements and the third parties who reasonably rely on those statements. Foreseeability is based on the special relationship this established.



For there to be liability for negligent misstatements unless there was a special relationship. This is to be distinguished from the fiduciary relationship and contractual relationship that had already been recognised by the law.

Hedley Byrne v Heller (1963) 2 ALLER 575

The plaintiffs were an advertising agent who wanted to book airtime so as to advertise Easipower company. They therefore asked their bankers to find out the financial status of Easipower. The plaintiff's bankers in turn asked Easipower's bankers on its financial status. Easipower's bankers falsely informed the plaintiff's bankers that Easipower was financially respectable. The company went bankrupt and the plaintiffs sued Easipower's bankers on the basis of such negligent misstatements.

The court found that they would have been liable except for the disclaimer,

“ Where a person is so placed that others could reasonably rely upon his judgement or his skill or upon his ability to make careful inquiry and he takes it upon himself to give information or advice or allows his information or advice to be passed onto another person who to his knowledge or as he should know will rely upon it amounts to a special relationship and gives rise to a duty of care”

Qualifications

In making such a statement a person can accompany it with a disclaimer so that he is not held liable. Where the information is given on an informal or casual basis, it does not give rise to a duty of care liability.

Note.

The majority of these cases involve banks and investment advisers and are 20th century cases. During the period of financial capital, the banks have a central role. The development of such liability is a typical feature of this era. The conflict of who should bear the burden of such loss was among capitalists themselves. The loss involved is of a financial nature. In **Candler v Crane, Christmas &co** Lord Denning in his dissenting judgement directly addresses the issue of financial loss. Whether it is financial loss or physical damage, the central questions according to him is the foreseeability. The fact that what was involved was financial loss and not physical damage should not be the determining factor in denying the plaintiff the right to recover damages.

Indirect Financial Loss

The common law did not award damages for pure financial loss in the area of negligence. Before the 19th Century the law was reluctant to award damages for purely economic loss and liability was limited to physical damage to person and property.

Damage in the form of economic loss was regarded as too remote to be foreseeable. This was for policy resources.

- 1) Unlike physical damage, the effect on economic interest may be too expensive and limited.
- 2) In assurance for such loss would be too high and unworkable

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- 3) Although economic loss may be huge it is likely to be evenly spread out among various persons. This is unlike physical injury, which is confined to particular persons

The law took such considerations in mind and limited recovery for financial loss to fiduciary or contractual relationships.

In *Candler v Crane and Christmas*, Lord Denning in his judgement argues that there should be no distribution in nature of damage and the overriding principle should be foreseeability.

The dissenting judgement was applied in *Hedley Byrne v Heller and Co* where the court rejected the distinction between physical injury and pure economic loss.

Liability is not limited to negligent misstatements but covers other aspects of negligence.

Owners of Dredger

The dredger was sunk as a result of the negligence of the defendants. The plaintiffs lost their cargo as a result. The court held that they recover the market value/ prices of the cargo as well as the cost delivery.

Wellers v Foot and Mouth Disease Research

The plaintiffs sued for economic loss due to closure of the cattle market in the area.

The court held that the cattle auctioned had no cause of action as they were not owed a duty of care because they did not have any proprietary interests that were affected by the defendant's negligence. The loss to the auctioneer was not foreseeable and only to the cattle owner was foreseeable.

The court held that their loss was pure economic loss and did not attach to any personal injury or injury to property.

British Celanese Ltd v Hunt

The court held that they could recover damages for the loss of raw materials and profit therefore and in respect of the materials that were already in the machines and would cause damage to them but not for pure economic loss. This was because it was not attached to any physical loss.

FAILURE TO ACT AS NEGLIGENCE OR OMISSIONS

Commonly negligence includes both acts and omission. However the law distinguishes between misfeasance and non-feasance i.e there is a distinction between active conduct leading to injury to others and passive inaction.

Early common law limited liability to positive misconduct and did not consider their failure to take steps for the benefit of others or to protect them from injury as actionable.

This is in line with the modern notion of human rights, which is more suited for limiting people's action rather than compelling them to act.

Liability for failure to act was a domain for the law of Contract, which granted remedies of specific performance where consideration had been furnished.



However, modern law of tort recognises the need to impose positive duties on persons for the benefit of others.

In the case of *Smith v Little Woods Organisation Ltd*, the House of Lords stated that under common law there is no liability for pure omissions. Their rule is justified by *Clark and Lindsell* on the ground that imposing positive duties would increase the burden on people who have no connection with victims. It is also argued that a rule imposing positive duties would require people to benefit from others which is unjustified.

A positive duty to act for the benefit of another may be imposed by law depending on the nature of the relationship between parties. An example is the employer-employee relationship. A doctor-patient relationship may also give rise to a duty to take positive action for the benefit of the patient. In *Barnett v Chelsea and Kensington hospital* the court held that the hospital's casualty affair was under a positive duty to examine and treat a patient as soon as they had been admitted to the hospital. The duty to take positive steps to prevent injury to another also arises where the defendant has put the plaintiff in a position which increases the risk of injury.

Barret v Minister of Defence an employer who provided cheap alcohol to employees was held liable for failure to take positive steps to treat an employee who fell unconscious

The distinction between misfeasance and non-feasance is also very pronounced in respect to rescue situation. The law chooses not to impose any positive duty to rescue those in danger, in the case of *Home Office v Dorset Yatch co Ltd (1970) AL 1004* Lord Diplock alluded to the parable of the good Samaritan in *Donogue v Stevenson* to stress the fact that English law does not impose any positive duty to rescue.

In *Barnett v Chelsea*, the positive duty only arose when the deceased was accepted as patient. There is a conflict of opinion as to whether a rescuer incurs a duty to complete the rescue or carry it out with reasonable skill and care once he starts it. *Barnet* only points to a duty to act but there is no authority on the standard of care to be expected. Some authorities hold that a rescuer is under a positive duty not to make the conditions of the victim worse than it was before the rescue.

The greatest contention arises in respect of public authorities which have the power to perform particular activities. Public authorities are immune from liability for negligence in the performance of their statutory duties. A distinction has been drawn between the negligent exercise of power by a public authority and the failure to exercise that power. In the case of *East Suffolk Rivers Catchment Board v Kent*, the respondents owned land along a river. A wall protected it but the wall partly collapsed due to increased tide. The defendants, a statutory authority attempted to repair it by running a bridge across the river. This method of repair was proved to be impracticable and the best would have been building a U shaped

bridge. The appellants also took very long period of time carrying out the repairs because of insufficient manpower, prolonging the damage to the respondent's land.

The House of Lords held that where a statutory authority is entrusted with a mere power to act they are not liable for damages to any member of the public in respect of failure to exercise that power.

The only duty owed to the member of the public is not to add to the damage caused. The court held that the duty was a public one and not a private duty to benefit the respondents. However, Lord Atkin in his dissenting judgements was of the view that the local authorities should



exercise their powers with reasonable care and skill and should be made liable for any damage attributable to their want of care.

The view in **East Suffolk** was challenged in the case of **Anns v Morton London Borough Council**. The local authority had the power to supervise and control the construction of buildings in their areas. The local authority approved construction of buildings, which turned out to have defective foundations. Plaintiffs owned the houses and incurred expenses in the repair of the houses. The House of Lords held that the local authority was under a duty of care to the plaintiffs to ensure that the inspections were done with reasonable care and skill. The fact that the act had been done in performance of a statutory duty did not exclude a common law duty of care owed to any member of the public. It was immaterial whether the local authority was performing a statutory obligation or simply exercising a mere power conferred by a statute.

Fellowes

However, in **Murphy v Brentwood** the House of Lords held that liability for failure to act did not extend to liability for mere economic loss.

In the case of **Ancell v McDermott**

The Court of Appeal held that the police was not under any duty to warn the public of any hazards found on the highway. A duty would only arise where there was a special relationship between the police officer and the plaintiff. This is really to emphasise that a member of the public cannot hold a police officer for the exercise of his powers

A similar decision was reached in **Alexandrou v Oxford**

An occupier of land is under duty to his visitor to ensure that he is reasonably safe on the premises. In the case of the **Goldman v Hargreaves**

In order to compel another to act for his benefit a plaintiff must establish that some duty to act was owed to him.

White v Jones solicitor not liable to beneficiaries for failure to include them in the deceased's will.

Banque Franciere

LIABILITY OF SKILFUL DEFENDANTS

The law of tort treats defendants according to the standard of care to be expected of them. The liability depends on whether one is a professional or not.

Scrutton LJ defined a profession in **Commissioners of Inland Revenue v Marse(1919) 1 KB 647**

- Profession in the present use of language involves the idea of an occupation requiring either purely intellectual skill or manual skill controlled as in painting or sculpture or surgery by the intellectual skill of the operator, as distinguished from an occupation which is substantially the production or sale or arrangement for sale of commodities'

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- **Professional** liability mainly focuses on medical professionals, lawyers, etc. The liability of professional negligence is not any different from any other aspects negligence where the defendant has some special skill.
- It is important to note that a professional does not guarantee any particular results but only what is reasonable. However, professional liability does not involve some important distinction in the operation of tort rules, which determine the scope of liability.
 1. **Professionals** do not guarantee results'
 2. **The law of** tort also recognises the operation of self regulation in determining the standard of care to be expected of professionals. In **Bolam v Friern Hospital Management committee**, the court held that a medical practitioner acting in accordance with a practice accepted by a responsible body of opinion was not negligent merely because there is a body of opinion which would take a contrary opinion.
 3. **Public interest may also influence the treatment of professionals. It is** also considered that they owe duties to the wider community and not only to particular individuals.

It was established in the case of **Herdley Byrne v Heller**, that professionals are liable in negligence to their clients independent of contract. The underlying principle is that where a person undertakes to provide the service to another person knowing that the latter reasonably relies on his professional competence and judgement, a duty of care arises, whether the loss suffered is physical damage or economic loss.

Medical Professionals

A medical professional owes a duty of care to his patient irrespective of contract. A medical professional is liable for any errors committed in the treatment of the patient, which are as a result of the failure to exercise reasonable care and skill. McNair J stated the standard of care required of a medical professional in ***Bolam's case***

The test is the standard of ordinary skilled man exercising and professing to have that special skill. A man need not profess the highest expert skill, it is well established law that it is sufficient if he exercises the ordinary skill of a competent man exercising that particular art

The practitioner in question is to be judged in light of his own qualification.

Furthermore, the standard of care is to be judged in reference to opinion in the particular field. A practitioner is not negligent if his conduct conforms to accepted practices according to Bolam's case.

The duty of care in negligence also requires that the professional warns the patient of any inherent risks in the choice of medication or medical procedure.

Sideway v Governor of Bethlehem Royal hospital

Legal Professionals

In the case of **Rondels v Worsley** the House of Lords held that Barristers are under a duty of care to their clients just like other professionals. However, there is immunity extended to them. In the above case, the court held that it was of vital importance that the barristers fulfil their duties to the court and their clients without fear or favour.



The standard of care is the same as Bolan's case. i.e in reference to opinion in the particular field

Bitumuka v Trustees of

Uganda The plaintiff aged 22

yrs

Pope John's Hospital v baby Kasozi

This was an action brought by an infant through his father as next friend for damages in respect of injury to his eye during birth. The action was against the doctor who effected his birth and his hospital where the birth took place. The birth was a difficult and prolonged affair.

Roe v Minister of Health

The plaintiffs went to hospital for minor surgery but as a result they were paralysed from the waist down. The paralysis was a result of the fact that ampoules of anaesthetic, nupercaine, which was administered through the spine, had tiny cracks in them, which allowed phenol the disinfectant to contaminate the anaesthetic.

The doctor was in private practice but was required to give regular service at the hospital. The Court of Appeal held that the doctor was not liable.

Lord Denning held,

If the anaesthetists had foreseen that the ampoules might get cracked with cracks that could not be detected or inspected they would no doubt have dyed phenol a deep blue and this would have exposed the contamination. But I do not think that their failure to foresee this was negligence. It is so easy to be wise after the event and to condemn as negligence that which was only a misadventure. We ought to be always on our guard against it, especially in cases against hospitals and doctors. Medical science had conferred great benefits on mankind but these benefits are attended by considerable risks. We cannot take the benefits without the risks. Every advance in technique is also attended by risks. Public policy considerations.

RES IPSA LOQUITUR (*facts speak for themselves*)

It is a well-established principle of law, that he who alleges must prove their allegations. Therefore, in tort generally and in negligence in particular the plaintiffs must prove their case on a balance of probabilities. In order to discharge this burden of proof, the plaintiff must prove specific facts, which constitute negligence.

At the turn of century, the risks became more complicated and technical and there was a need to ease the burden on the plaintiff in order to do justice. *Res ipsa Lonquitor* is a principle of evidence where the facts speak for themselves. The court under this rule draws an inference of negligence against the defendant without the plaintiff proving specific acts, which constitute negligence. In the absence of an explanation on the part of the defendant the plaintiff discharges the burden of proof.

In the case of *Roe v Minister of Health*, Lord Morris summed up the operation of the principle. He said that the maxim possesses no magic qualities nor has it any virtue, other than that of

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brevity, merely because it is expressed in Latin. When used on behalf of plaintiff its generally a short way of saying I submit that the facts and circumstances which I have proved establish a Prima facie' care of negligence against the defendant. There are certain happenings that do not normally occur in the absence of negligence, and upon proof of these court will probably hold that there is a case to answer.

Similarly *Flemming on Torts* states that the maxim contains nothing exceptional, it is based on common sense, since it is a matter of ordinary observation and experience in life that sometimes a thing tells its own story.

The principle is no more than establishing a prima facie case of negligence , it is a law of evidence

The case of *Nanziri v Kambaža* summarises the operation of the principle in Uganda.

The plaintiff was travelling as a paying passenger in the defendants motor vehicle. The vehicle suddenly swerved off the road and collided with a bridge over a river and overturned. The plaintiff stated that she was travelling from Kampala to Busabala when the vehicle overturned and she fell unconscious.

Odoki Acting Judge held that RIL means that in the circumstances of the particular case the facts stand unexplained and lead to a natural and reasonable but not conjectural inference of negligence on the part of the defendant. It is a mere rule of evidence to help the plaintiff establish breach of the care on the part of the defendant without any particulars of negligence. Before the rule can be applied the following conditions must be fulfilled.

Frank Makumbi Colville v Deville – Rank Consult Jack Busingye

- The thing inflicting the damage must have been under the sole control and management of defendant or a person for whom he is responsible.
- The occurrence is such that it would not have occurred without negligence.
- There is no explanation as to how or why the accident occurred. There must be an inference of negligence.

In *Chaproniere v Mason* the court applied the principle to hold the defendant liable for negligence. The court held that the presence of a stone in a beer could not be explained other than as negligence.

Rev. Father Wasswa v A . G.

The plaintiff sued for damages as a result of an accident.

Tabaro Judge held that vehicles do not normally collide or hit other objects without any negligence on the part of the driver even when driven at high speed. He held further that the maxim RIL applies whenever it is so improbable that such an accident would have happened without negligence on the part of the defendant.

A defendant can rebut the presumption of negligence by proving lack of negligence on the part of the driver or establishing that there was another probable cause of the accident.

A similar decision was reached in *Robson Kato v Erukana Kamya*.

The plaintiff with other pupils gone to play football. The teacher and driver drank beer after the accident. The lorry suddenly overturned that the plaintiff index finger was crushed.



Allen Judge held that the maxim applied as the cause of the accident was not known. The inference of negligence was clear from the circumstances of the case as lorries do not just overturn for no reason. It was up to the defendant to produce evidence to rebut the inference. If the defendant has taken the requisite care the accident would not have happened.

Frank Mukibi V Kigezi African Bus

The plaintiff was travelling in a bus with his wife and two year old child. Somewhere along Masaka road they met a trailer coming from the opposite direction. The bus moved to the left to give away to the trailer but fell off board and rolled into the valley *finally resting on its top*. Okello Acting Judge held that the vehicle belonged to the defendant and was at the material time under the sole management and control of the defendant's servant whom they had the right to control. The accident would not have occurred without negligence, there was no evidence as why or how the accident occurred. This was a proper case in which the doctrine RIL would be applied.

Kesi Kaggwa v Y.K.Sedya.

The plaintiff was a general assistant in charge of the goods transported by the defendant. While travelling in the defendant's lorry in the course of his employment, he was seriously injured as a result of an accident caused solely by the negligence of the defendant's driver. Russul Acting Judge accepted that the doctrine of RIL applied.

Heavily loaded lorries do not usually swerve off the road in the absence of negligence. The defendants had not proved why or how the accident occurred. The principle cannot be applied where the accident can be otherwise

explained. Sam Osingida

The defendants must prove that occurred as a result of another cause that did not infer negligence on their part or on the part of their employer.

Bikwalirizo.

The effect of the doctrine is to shift the burden of proof to the defendant.

Flemming on Torts argues that it is a rule of evidence that does not shift the burden. He suggests that the doctrine only shifts the provisional burden.

Bikwalirizo v Railway Corporation

The appellant was injured when a train she was travelling was herailed due to subsidence of the track. She alleged that the track was not maintained in proper condition and relied on the doctrine of RIL to establish negligence.

The respondent proved that there was a satisfactory system of inspection and maintenance but did not call to give evidence the workman responsible for the maintenance of that particular section of the track, nor did he explain this failure.

Spry Ag.P. held that where RIL applies the burden of proof on the defendant to disprove negligence is not a provisional burden.



A defendant can avoid liability by showing that there was no negligence on his part, that the accident was due to circumstances beyond his control or that there was a more probable cause of the accident which did not cause negligence on his part. It was not enough to show that there was an adequate system of maintenance; it had to be shown to work.

Embu

The husband of the respondent was travelling as

CONTRIBUTORY NEGLIGENCE

Contributory negligence is a situation where the plaintiff fails to conform to the required standard of care for his own safety and contributes to the defendants' default in bringing about his injury. In this context contributory denotes a failure to avoid injury on the part of the plaintiff and not necessarily active participation in the activity causing damage.

Contributory Negligence does not mean that the plaintiff has breached a duty of care of any sort but only means a failure to achieve the required standard for personal safety. A person does not owe any duty of care to anyone to protect himself. The defence was developed during the era of capitalism and was a perfect defence. It excluded liability on the part of the defendant whenever it could be established that the plaintiff contributed to the default of the defendant. The defence was modified last opportunity.

Bulterfield v Forrester 1809

In 1945 the L R (Contributory Negligence) Act was enacted in UK to allow a plaintiff recover damages to the extent of the defendants fault. This law was extended to Uganda in L R (Misc. Prod) Act 74 provide as follows. " where a person suffers damage as the result partly of his own fault and partly the fault of any other person / persons., a claim in respect of that damage shall not be defeated by reason of the default of the person suffering the damage but the damage is recoverable shall be reduced to such extent as the court thinks just and equitable having regard to the claimant share in responsibility for the damage.

Section 15(2)

Where damages are recoverable by any person by virtue of subsection 1 of this section subject to such reduction as therein mentioned, the court shall find and record the total damages, which would have been recoverable if the claimant had not been at fault.

The effect of this section is to allow a plaintiff who is guilty of contributory negligence to recover to the extent of the defendants fault. The court has the

discretion to apportion default as between the plaintiff and defendant. In the exercise of such discretion the court should have regard to the conduct of the plaintiff.

Under this defence, the defendant's negligence is the cause of the accident but the plaintiff's conduct contributes to the injury. The plaintiff's conduct must be such as falls below the standard for the protection self. It should be noted that the law does not impose a duty of care on the plaintiff not to endanger himself but simply does not allow himself recover damages where he contributes to his injuries. In determining whether the plaintiff's conduct fell below the required standard the court should have regard to the risk posed by such conduct. The court



applies a very subjective standard in judging the plaintiff's conduct and this reduces the scope of the defence.

In the case of **Capps v Miller**, the plaintiff suffered severe brain damage as a result of being knocked down by a defendant's car. At the time of the accident the plaintiff was riding a motorbike. He was wearing a helmet but chinstraps were not fastened. The helmet fell off and he suffered severe brain damage.

The court held that the plaintiff's failure to fasten the chinstraps contributed to the extent of his blameworthiness. The court distinguished between not wearing a helmet at all and wearing one but not fastening the chinstraps. In the circumstances his contribution was only 10%

In *Fitzgerald v Lane and Anor*, the plaintiff briskly walked onto a pelican crossing when the lights were green for traffic and red for pedestrians. When he reached the centre he was struck by the first defendant's car and was thrown onto the other side where he was struck by the second defendant's car. He sustained multiple injuries.

The trial judge found all the three parties equally responsible for the accident. The defendants appealed.

The second defendant argued that the plaintiff had failed to prove that having regard to the impact of the first defendant's care, which had already occurred the impact with the defendant's car had materially contributed to the defendant's injuries

On appeal the court should consider the position between the plaintiff and each defendant separately. In this case, the plaintiff was liable 50% and the defendants 50%

In such a case of the two or more separate causes of the injury, a defendant was liable in negligence if it was established that the defendant's breach of duty of care had created a risk that the injury would be caused or increased.

The standard of care expected of a plaintiff is generally the same as that required in the general law of negligence. However, the standard is much lower in respect of children.

In the case of **Nsubuga v PN Kavuma**, it was held that a child of tender years may be held to be guilty of contributory negligence for there is no age below which as a matter of law it can be said that the child is incapable of contributory negligence, it must be proved that the child refused to take precaution reasonably expected of a child of his age.

In the case of AG v Vinod a child of 8 and a half years was knocked down on a busy street. The car was travelling between 15 and 20km/h and the driver did not see the child. The court held that he was not guilty of contributory negligence because he was not blameworthy. It was held further that the young child cannot

be found guilty of contributory negligence unless he has the capacity to take precaution and in this case this had not been proved.

Negligence of a guardian not precludes the child from recovering. The burden of proving contributory negligence on the part of the plaintiff lies with the defendant.

Yozefu Musizi

Agony of the moment

Where the plaintiff's actions are prompted by the apprehension of danger created by the defendant, it does not amount to contributory negligence. The plaintiff must have chosen a



cause of action that was reasonable in the circumstances although it contributes to his injury. In the case of **jones v boyce (1861)** the plaintiff was travelling on top of the defendant's couch. The reins broke and the plaintiff thought it would overturn; he jumped off and broke his leg. The couch did not overturn in fact. The court held that he could recover although he had endangered himself. The course of course of action chosen by him was reasonable in the circumstances and did not amount to contributory negligence.

Contributory negligence of a person for whom the plaintiff is responsible may preclude the plaintiff from recovering.

Where the damage is caused by a breach of statutory duty the defendant may rely on contributory negligence.

Contributory negligence does not apply to causes of action based on contract or deunit.

Alliance v Leicester.

The damage is apportioned as between defendant and plaintiff. The Act requires the court to reduce the damages recoverable by the plaintiff to such extent as is just and equitable having regard to the claimant's share of responsibility. The court must take into account causation and blameworthiness on the part of the plaintiff in apportioning damage.

In case of more than one defendant, the court must apportion responsibility between them.

Fitzgerald v Lane and another

VOLENTI NON FIT

INJURIA

The defence of voluntary assumption of risk is a defence to actions in negligence, which corresponds to the defence of consent in intentional torts. It is a perfect defence and is not subject to the rules of apportionment that are applicable to contributory negligence. The defence is closely related to the defence of contributory negligence.

Volenti non-fit injuria is invoked whenever a plaintiff with full knowledge of the fact assumes the risk of injury to himself. The assumption of risk may be expressed or may be implied from the conduct of the plaintiff.

It covers actions for damages in respect of personal injuries as well as damage to properties.

The defence was developed during the era of capitalism. In the 19th Century anyone who encouraged a known danger was precluded from recovering damages on the ground that he had assumed the risk of injury. This worked perfectly for industrialists who could avoid liability to their employee whenever it could be

proved that the employee continued working even after being aware of the danger.

This defence was modified in the case of **smith v Baker (1891) AC**

325. The case laid down the rule that voluntary assumption of risk cannot be imputed on the plaintiff merely because they encouraged a known hazard and thereby consented to the risk of injury. In order to disqualify him from recovering it must be shown that he consented to run the risk at his own expense so that he is not the negligent defendant who should bear the loss in case of an accident.

There are various explanations for the operation of the defence.

It is argued that the defence has the effect of negating the duty of care owed to the plaintiff. Some authorities argue that the plaintiff established as between himself and the defendant a relationship, which reduces the standard of care as that the plaintiff's expectations as regards the duty of care are minimal.



The plaintiff negligently assumes an unreasonable risk which overrides the negligence of the defendant as the cause of the injury. This reasoning has the effects of altering the principles of causation.

Nantongo v Hiral Mohamed

A petrol tanker was parked in a muddy patch in Nakivubo and got stuck. The plaintiff and the other participated in siphoning out the fuel. One of the people struck a match and the fuel ignited.

The plaintiff sued the defendant in negligence in respect of the accident. The defendant pleaded voluntary assumption of risk. The court held that the cause of the accident was not the defendant's negligence but that of the plaintiff

In order for a defendant to successfully invoke the defence, the plaintiff must have freely and voluntarily assented to the risk of injury with full knowledge of the fact.

The assent may be express or implied.

The express consent may take the form of a contract where a plaintiff relinquishes his right to damages in respect of the defendant's negligence.

Photo productions v Securicor

The notion of exemption clauses is based on the reasoning that people should be free to forego their legal rights. However, the courts would not accept the defence if there was no voluntary assumption of the risks based on full knowledge.

Contract
Fundamental
breach
Standard form
contracts Consumer
protection
Employment contract

Adman Ramadan v EA Rys wrp (!975) HCB 96

Consent may be implied from the conduct of the plaintiff. The plaintiff's conduct must be such as would amount to an assumption of the known risks. The mere fact that the plaintiff was aware of the danger does not necessarily mean that he has assumed the risk. The courts distinguish between the physical risk of injury and the legal risk. The plaintiff must have consented to bearing both physical injury and the loss arising thereby. In short he must have also relinquished his rights to legal redress.

Nettleship v Weston (1971) 3 ALL ER SB1

The plaintiff was requested by miss Weston to instruct her in driving in her husband's car. The plaintiff agreed but inquired whether her husband possessed a

comprehensive insurance policy. In the course of the instruction, Mrs. Weston panicked at a round about and had an accident. The plaintiff was injured and sued for damages. The defendant invoked voluntary assumption of risk as a defence. The court held that the defence was not available to the defendant. The plaintiff had only accepted the physical risk and not the legal as evidenced by the inquiry about the nature of insurance policy in place.

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Similarly in the case of **Miltha and anor v Sande** the defendant was precluded from relying on the defence.

The two appellants were travelling in a car driven by the defendant. The car overturned at a corner seemingly due to an under inflated tyre. All agreed that there had been a puncture at one point in the journey. There was no agreement as to whether the tyre was replaced. In an action for damages in respect of the personal injuries, the defendant sought to rely on the defence of volenti non-fit injuria.

The court held that unless there was an express or implied agreement to run the risk at the expense of the plaintiff the defence could not be relied on. The defendant in this particular case had failed to prove that the appellants had assumed the risk of travelling in a car with an under inflated tyre.

Although, voluntary assumption of risk is a perfect defence, the court interpret consent very strictly with the result that the scope of the defence is extremely limited.

Indeed in **Dann v Hamilton**, the court held that except in extreme cases, the maxim volenti non-fit injuria does not apply to the tort of negligence so as to preclude from remedy a person who has knowingly and voluntarily accepted the risks which may arise from the driver of a car being under the influence of drinking, and has been injured in consequence.

In that case, the plaintiff knowing that the driver of the car was under the influence of drinking and that consequently, the chances of accidents were thereby substantially increased, nevertheless, being under no compulsion either of necessity or otherwise chose to travel by that car. She was injured as a result of an accident in which the driver was killed. She brought an action for damages against the estate of the defendant. The defendant pleaded volenti non-fit injuria.

The court held that the defence was not available to the defendant. The plaintiff had not assented to any risks of the drunken driving. Full knowledge of the facts without more did not amount to consent to the risks.

The defence is only available where it can be proved that the plaintiff expressly assumed the physical and legal risks.

Khimji and anor v Tanga Mombasa Tr. Co

The plaintiff was held to have voluntarily assumed the risk of the injury as well as the legal risks. In that case it could be said that the plaintiff had actively encouraged the defendant to embark on activities causing injury.

The plaintiff must have appreciated the facts as well as comprehend the risk implicit therein. He must have appreciated the extent of the hazard.

In some circumstances where the defendant's duty may be discharged by this

closure of the hazard, knowledge of the facts may amount to volenti non-fit injuria.

The plaintiff must have voluntarily associated with the defendant. The plaintiff must have had the freedom to choose whether to assume the risk or not. This choice must be based on the full knowledge of the facts.



Other defences

Inevitable accident

DEATH AS A CAUSE OF ACTION

Under common law it is a rule based on the decision in *P Okeo v Bolton* (1808) that no one can recover damages in respect of death of another. The essence of this is that death of one person cannot constitute an injury to another.

This was changed by statute. The Fatal Accidents Act. Law Reform Misc Provisional Act provides under S. 7

“ if death of any person is caused by any wrongful act, neglect or default is such as would if death had not ensued have entitled the person injured thereby to maintain an action to recover damages in respect thereof, the person who would have been liable if death had not ensued shall be liable to an action for damages notwithstanding the death of the person injured and although the death was caused under circumstances amount in law to a felony.”

S. 8 (1)

“ Every action brought under the provision of s. 7 shall be for the benefit of the member of the family of the person whose death has been so caused and shall be brought either by and in the name of the executor or administrator of the person deceased or by and in the name of all or any of the members of the family of the person deceased”

S. 8 (2)

“ Court may give such damages as it may deem proportionate to the cause of death of the deceased and may distribute the damages to the dependants.

S. 11 proportions of dependants

S. 12 funeral expenses will be recoverable.

The action is to be brought by the executor or administrator. This was defined in the case of **Kiryahyire v Sohasi Kawere**. The action is for the benefit of the dependants of the deceased person.

Dependants are laid down in the statute S. 11

In the case of *Margare Kirumira v Ztirling* the court held that the listed were dependent relatives under the **Succession Act** and could recover.

In the case of **Musoke v UEB**, the court held that the action was stated to be for the benefit of the members of the deceased's family.

The members of the deceased's family can recover for loss of pecuniary benefit. This is often referred to as loss of dependency. The plaintiff need not as a matter of law prove some pecuniary advantage or benefit from the deceased before some reasonable expectation of pecuniary benefit as of right or otherwise from the continuance of the deceased's life.



In **Musoke v UEB**, the court held that any services performed by a child at home as part of family discipline had no pecuniary value and could not be compensated. Loss of expectation of dependency was also not proved.

Earlier cases had held that a parent could recover damages in respect of loss of services of her child. In the case of **Nyanzi v Securicor, Nyamchoncho** held that damages for fatal accidents could be awarded on two principles;

A parent who can show that at the time of his injury,

.In **Frank v Kigezi African service**, the court held that a parent could recover damages for loss of expectation of it to hire.

From the above, it is clear that the alleged benefit need not be in money terms but the case of Musoke made it imperative to prove such loss beyond ordinary family disruption.

In assessing damages for pecuniary loss as a result of a fatal accident, the court speculates about the future. The case of **Agnes Masene v UTC** lays down the principles to be followed.

Look at **Odoki of SC in Musoke**.

English courts award damages for bereavement but Ugandan courts do not.

Survival of causes of action

Under common law, death extinguished actions of benefit of the deceased. This was rectified in 1943 in Britain and in 1958 in this country because of recognition that accidents were likely to be fatal.

Under s. 13(1), on death of any person all causes of action subsisting against or rested in him shall survive against or as the case maybe for the benefit of his estate provided that this shall not apply in,

- Defamation
- Seduction
- Inducing one spouse to leave and remain apart from the other
- and claim under S.22 of the Divorce Act (alimony)

S.13(2) where the action survives damages recoverable shall not include exemplary damages.

STRICT LIABILITY

THE RULE IN *RYLANDS V FLETCHER*

Strict liability,

Early common law was in the nature of strict liability and did not take into consideration the moral responsibility of the defendant. The defendant was not liable because of some fault on his part but on the basis of the fact that he had done some act. The rationale for strict liability is to hold the defendant liable for inevitable consequences of the abnormal risk he created.

The rule in **Rylands v Fletcher** has its origin in the law of nuisance but has evolved as a distinct principle of strict liability. John Rylands constructed a reservoir on land he was renting to



supply water to his steam powered textile mill. Thomas Fletcher operated mines in the area and had tunnelled up to old disused mines which were under the new reservoir. Both were renting land from Lord Wilton and both were lawful users of their land. Rylands employed independent contractors and engineers to do the work of building the reservoir which was completed in December 1860. The lands were in Lancashire, in an area known for its mines. While excavating the construction site, the contractors came across some disused mine shafts which had been loosely filled with marl and soil. No attempt was made to seal them. In fact, the shafts led via a series of interconnected shafts and tunnels into Fletcher's mines and land. Water from the mill's reservoir flooded into Fletcher's mines on 11 December 1860 just days after completion of the reservoir and after it had been partially filled. Fletcher sued Rylands. There had been no excessive rains or local floods.

The issue before the Court was whether the doctrine of strict liability could be applied to inherently dangerous activities in the same way it was applied in nuisance and cattle trespass. Trespass was considered not to be an available cause of action as this requires a direct invasion of an interest (land, goods or person) by a person, and by 1860, for trespass to succeed, there was the need to prove culpability in the form of [negligence](#) or wilful intent. Fletcher argued that the doctrine of strict liability should be applied, that the peaceful enjoyment (ie interest) in his land had been invaded and Rylands should be liable for the damages caused by his inherently dangerous activity (that is, collecting a dangerous amount of water on his land which then "escaped" into the mine). Rylands argued that he was acting reasonably and lawfully on his land and thus should not be held responsible for a simple accident.

The Court found in favour of Fletcher and ordered Rylands to pay for all the property damage to the mine. The Court agreed that Rylands had a duty in maintaining the reservoir and of being liable for all harm caused by it with broad scope of liability.

Justice Colin Blackburn spoke on behalf of all the judges and said,

"We think that the true rule of law is, that *the person who for his own purposes brings on his lands and collects and keeps there anything likely to do mischief if it escapes, must keep it at his peril, and, if he does not do so, is **prima facie** answerable for all the damage which is the natural consequence of its escape. He can excuse himself by shewing that the escape was owing to the Plaintiff's default; or perhaps, that the escape was the consequence of vis major, or the act of God; but as nothing of this sort exists here, it is unnecessary to inquire what excuse would be sufficient.*"

Lord Cairns stressed that the defendant must have put his land to some unnatural use. This rule has been applied widely to situations of damage to property.

Requirements

It was decided by **Blackburn J**, who delivered the judgment of the Court of Exchequer Chamber, and the House of Lords, that to succeed in this tort the claimant must show:

1. That the defendant brought something onto his land;
2. That the defendant made a "non-natural use" of his land (per Lord Cairns, LC);
3. The thing was something likely to do mischief if it escaped;
4. The thing did escape and cause damage.
5. Foreseeability of damage



There is now a further requirement, according to the House of Lords, that harm of the relevant type must have been foreseeable. *Cambridge Water v Eastern Counties Leather* [1994] 1 All ER 53

Cambridge Water Works v Eastern Countries Leather P/C

The defendants were leather manufacturers who used a chemical solvent in their tanning process. Until 1971, when their process changed, small quantities of the chemical spilled on to concrete floor of their factory. It then seeped in to the soil and percolated into the underground water channels, which was later extracted by the plaintiff for domestic use via a bore hole. The distance between the plaintiffs' borehole and the defendants' tannery was 1.3 miles and time taken for the solvent to seep from the tannery to the borehole was about 9 months. The plaintiffs brought an action against the defendants claiming damages in negligence and nuisance and under the rule in *Rylands v Fletcher* for contamination of the water extracted from the borehole.

The court held that foreseeability of damage of the relevant type if there was an escape from the land of things likely to do mischief was a prerequisite of liability. Strict liability for the escape from land of things likely to do mischief only arose if the defendant knew or ought reasonably to have foreseen that those things might if they escaped cause damage. The rule was one of strict liability in the sense that the defendant could be held liable where there was an escape occurring in the course of the non-natural use of land notwithstanding that he had exercised all due care to prevent the escape from occurring. Since the defendants could not in the circumstances reasonably have foreseen that the seepage of the solvent through their tannery floor could have caused the pollution of the plaintiffs' borehole, they were not liable under the rule in *Rylands v Fletcher*.

The rule in *Rylands v Fletcher* does not operate in respect of **personal injuries** but only in respect of damage to property.

In **Read v Lyon**, the respondents under an agreement with the ministry of supplies undertook the operation and control of an ordnance factory as agents for the ministry and carried on in the factory the business of filling shell cases with the high explosives. The appellant was an employee of the ministry, with the duty of inspecting the filling of the cases and while lawfully carrying on her duties she was injured by a shell explosion. She sued for damages in respect of her injuries. She relied on the rule in *Rylands v Fletcher*. The court of appeal held that the defendants were not liable. On appeal, the House of Lords held that although the work involved in was dangerous and needed special care thus a high standard of care, there was no reason why the respondents would be liable for the injuries in the absence of negligence. Under the rule in *Rylands v Fletcher*, damages could be recovered for damage to property and not personal injuries.

This principle applies where the **use of the land is unnatural**. This was stressed by

Lord Cairns in *Rylands v Fletcher*.

Mason v Levy Auto Parts Ltd [1967] 2 All ER 62. The Ds stored flammable material on their land. It ignited and fire spread to neighbouring property. The Ds were held liable as the storage of the materials amounted to a non-natural use of the land

In **Richards v Lothian**, the plaintiff leased second floor offices in a building occupied by the defendant. One morning he found his stock-in-trade seriously damaged by water. This water



came from the fourth floor lavatory basin, whose outlet had been plugged with nails, soap, pen- holders and string and whose tap had been fully turned on.

The court held that the alleged use of the land must be some special use bringing with it increased danger to others, must not merely be the ordinary use of the land or such use as is proper for the general benefit of the community.

There had been disagreement about the meaning of unnatural use of land contained in *Rylands v Fletcher*. Some opinions held that it was the introduction of the dangerous activity which was the use that had to be unnatural.

In determining whether the defendant has introduced some unnatural activity on his land the courts must look at the particular circumstances of the case settings etc.

It is a question of fact. **Read v Lyons** the thing introduced by the defendant must be such as is likely if it escapes. This does not mean that the object must be inherently dangerous for this would make it too wide but to some extra hazardous use of the particular object. This should be distinguished liability in negligence. Whether an article is dangerous as to invite strict liability for its escape is a question of fact. Read v Lyons.

In charring Cross Electric Supply Co-water.

The principle does not apply to things naturally occurring on the land. Non natural user of land

Richards v

Lothian.

Lord Moulton

It is not every use to which the land is put that brings in to play the principle. It must be some special use bringing with it increased danger to others.

Read v Lyons, Lord Porter, “each case serves to be a question of foul subject to a ruling of the judges to whether, the particular use can be non natural, in deciding this question I think that all circumstances of the time and place and produce of mankind must be taken into consideration so that what might be regarded as non natural may vary according to those circumstances.”

In **Cambridge water works**, the court held that it was not enough that the use was unnatural but the damage which occurs must be *foreseeable*.

The rule applies to all persons who bring onto their land some unnatural hazard. Any person who is in control of the land where the hazard is liable.

There must be escape.

In order to recover under the rule in *Rylands v Fletcher*, the thing which doe the damage must have escaped from a place where the defendant has occupation or

control over land to a place which is outside his occupation and control.

In *Read v Lyons*, the plaintiff could not recover because there had been no escape. The court held that people outside the factory who suffered damage to their property as a result of the explosion could have been able to recover.

The escape need not be into the plaintiff's land as long as damage results in the plaintiff's property. *British Celanese v Hunt capacities*.



The defendant may be liable even where he did not use the hazardous thing on his own land high ways.

DEFENCES TO THE RULE IN *RYLANDS V FLETCHER*

The law admits defences or exception to the rule in *Rylands v Fletcher*. In that case **Blackburn** pointed out the exception to the rule as, consent of the plaintiff, default of the plaintiff, act of God, act of a third party. Fleming suggests that this is an effort to interpret the rule in *Rylands v Fletcher* in conformity with the default principles founded in negligence.

Consent of the plaintiff

Where the plaintiff has consented to the presence of the hazard on the defendants land, he cannot seek redress when it escapes and damages his property in the absence of negligence. The defence is similar to *volenti non-fit injuria* in respect of negligence. The consent of the plaintiff may be express or implied.

Consent may be implied where the parties derive a common benefit from the presence of the hazard. This was established in the old case of **Carstairs v Taylor (1871)**, the plaintiff rented premises on the ground floor of a warehouse from the defendant. Water from the roof was collected by gutter into a box from which it was discharged by a pipe into drains. A rat gnawed a hole into the box and water leaked through it and damaged the plaintiff's goods. The court held that the defendant was not liable in the absence of negligence.

However, where the plaintiff derives benefit from a hazard provided by a statutory agency, consent will not be implied. Similarly, where the plaintiff occupies premises, which already has a hazard, he will not be presumed to have consented.

In **North western Utilities v London Guarantee**, the plaintiff was a consumer of gas supplied by the defendant. There was an explosion in the gas pipes maintained by the defendant which caused damage to the plaintiff's premises. The court held that the plaintiff could recover on the basis of the rule in *Rylands v Fletcher* and had not consented.

Act of God

The rule in *Rylands v Fletcher* does not apply where the escape of the dangerous thing is caused by natural causes without human intervention. The defence was recognised in *Rylands v Fletcher* but was first applied in **Nicholas v Naisland**, the defendant for many years had been in possession of some artificial ornamental lakes formed by damming up a natural stream. There was extra ordinary rainfall, which broke the artificial embankments and washed away four bridges. The plaintiff sued in respect of such damage. The court held that in absence of negligence, the defendant could not be held liable for the damage.

The correctness of the decision was challenged in **Greenock Corp v Caledonian**,

in that case, the defendants constructed a concrete paddling pool for children at the bed of a stream and they altered the course of a stream so as to obstruct the natural flow of the stream. Owing to extraordinary rainfall, which would normally have been carried off by the stream, it poured down a public street and caused damage to the plaintiff's property. The House of Lords held that this was not an act of God and the defendants were liable. The defendants were under duty to ensure the safety of the occupants of the lower lands as they would have been had the defendants not interfered with nature.

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Whether or not an occurrence is an act of God is a question of fact. The overriding principle is that the occurrence should be such as no human foresight can provide against and of which human prudence is not bound to recognise the possibility of its occurrence. It is rather hard to contemplate whether the escape of a hazard through natural causes should be a defence to strict liability. The defendant should be held liable on the basis of the danger they pose to society.

Rylands v Fletcher (1956) 72 LQR 184

Act of the or default of the plaintiff.

Where the escape of the hazard is due to solely the act or default of the plaintiff they have no remedy in the law. This was recognised by Blackburn in *Rylands v Fletcher*

However, where the plaintiff action only amounts to contributory negligence, he can recover to the extent of the defendant's responsibility.

In **Eastern S.A Telegraph Co, LFO v Cape Town Tram Ways Companies Ltd** the defendants stored and used electricity for working in their tramcars. It escaped and interfered with the sending of messages by the plaintiffs through their submarine cable. The escape would not have caused interruption of telegraphic communication generally but the plaintiff was unusually sensitive to current. The court held that a man cannot increase the liabilities of his neighbour by applying his own property to special uses whether for business or pleasure.

In **Hoare Co v Mc Alpine**, vibrations from pile driving caused structural damage to a large hotel on adjoining land. The judge was of the view that the plaintiff had not put his property to any special use to deny them a remedy.

Act of an independent third party.

The rule in **Richards v Lothian**, the lavatory basin was blocked by a third party and this caused damage to the plaintiff's stock in trade. The court held that the defendant was not liable under the rule in *Rylands v Fletcher*. The defence is limited to situations where the escape is as a result of the deliberate act of an independent third party.

Then onus is on the defendant to prove that the accident was a result of the act of a stranger. In *North Western Utilities ltd v London Guarantee and accident Co*, a hotel belonging to and insured by the plaintiffs was destroyed in a fire caused by the escape and ignition of natural gas. The gas had percolated into the hotel basement from a fractured welded joint in an intermediate pressure main situated below street level and belonging to the defendants main by a third party. The court held that the acts of the third party were reasonably foreseeable and the defendant could not escape liability on that ground.

Statutory authority.

Liability under the rule in *Rylands v Fletcher* may be excluded by statute. In *Chairing Cross Electricity Co v Hydraulic Power Co*, the company was under a statutory authority to supply water for industrial use and to lay mains. One of its mains burst and damaged the plaintiff's premises. The court held that on the construction of the statute in question, the company had the obligation to maintain a supply of water and the damage was therefore, inevitable. The statutory body is not liable for any damage resulting from an act expressly authorised by the statute or incidental thereto.



LIABILITY FOR DANGEROUS ANIMALS

Under common law, a person who keeps animals is under a duty to keep them from trespassing and prevent harm from animals whose dangerous tendencies he is aware or is presumed to be aware. The liability for animals is an application of strict liability. Animals are divided into tame and dangerous animals.

Liability for trespass of animals.

Under common law, a possessor of livestock was liable for any trespass that may be caused by them. There was an exception in respect of livestock lawfully on the highway.

The owner or possessor is liable for any damage that may occur to the land or crops as well as livestock of another.

- Defence of default of the plaintiff
- Act of a third party
- Act of God

Where the animal was *mansuatae naturae* the owner was only liable for the kind of damage to be expected of such an animal. Where it was livestock, the damage had to be according to the natural characteristics of the animal.

Liability for dangerous animals

Under common law, a keeper of an animal was strictly liable, independently of negligence for any damage done by the animal if it was *faerae naturae* (belonged to a dangerous specie) or *mansuatae naturae* (did not belong to a dangerous specie) if he knew about its vicious character.

Ferae naturae and mansuetae naturae

the law imposes strict liability on a possessor of a vicious animal for any damage that it may cause.

In **May v Burdett (1846) 9 QB 181** the plaintiff recovered damages in respect of a monkey bite in spite of the lack of negligence on the part of the owner. The law presumes that the keeper is aware of the vicious instincts of the animal and its immaterial whether he appreciated the potential danger or not. This is the action in scienter. The rule is also distinct from *Rylands v Fletcher* in that the animal need not escape.

Animals that are *faerae naturae* are regarded as unsafe in the face of and liability attaches irrespective of any lack of savageness of the animal. **Berlrem v Beltam mills. The defendants used an elephant in their circus.** The court imposed strict liability on them on the ground that it was *faerae naturae*. Where the animal is not of a vicious character, the owner is only liable where he is aware of its viciousness.

The test of whether an animal is *faerae naturae* or not is its potential danger to mankind. **Buckle v Holmes.**

In England, liability is governed by statute which classifies animals according to their propensity to do severe damage to mankind. Wild animals are presumed to be dangerous. Ordinarily domesticated animals are excluded.

Scienter

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Where an animal is harmless but contrary to the ordinary characteristics of its species it causes damage, the keeper is not liable unless he was aware or should have been aware of these vicious characteristics.

The keeper must be aware of the particular propensity that causes damage to the plaintiff in order to be held liable. The plaintiff need not prove that the animal had done that particular kind of harm before as long as it displayed traits to do the particular harm.

Knowledge may be imputed on the defendant where he delegated to someone with full knowledge and control or where it was gained by a third party and communicated to him.

The propensity of harm displayed by the animal must be the kind that poses a danger to humans or animals. It should not be mere playfulness displayed by other members of the species. The owner is only liable to harm that is attributable to these vicious propensities. As regards *animal farae naturae*, American courts hold that the owner is only liable for damages as a result of the vicious propensity. To the contrary, English courts impose strict liability for any kind of harm that may be caused by the animal.

There is an argument that liability should be limited to the particular risks that the animal poses and not extensive damage of any kind.

Liability is imposed on the keeper of the animal and not necessarily the owner. The defendant incurred where the plaintiff is liable for his own injury.

Yesero Mugenyi

The plaintiff an advocate Held

A dog was an animal *mansuete naturae* and was not within the class of wild animals. Before the owner could be held liable it had to be shown that the particular dog had a fierce nature and that such was known to the owner.

The dog had been deliberately trained by the defendant company to stay with human beings. The defendant could not claim that the particular dog in the circumstances to be more than an ordinary dog. In attacking the plaintiff the dog was not indulging in a natural propensity but was doing what it had been trained to do. The defendant knew that the dog was so trained and would be liable.

Bany v Campbell

The defendant was the owner of a boar which he had bought from the plaintiff. The boar escaped to the plaintiff's farm and kicked the plaintiff's mare. The defendant had been told that the boar was fierce.

The court held that any one keeping an animal, which he knows to be fierce, does so at his own risk and is liable for any damage by such an animal when it escapes. The defendant having failed to properly look after the animal and prevent it from its fierce disposition was liable to the damage it caused.

Hussein Kijju v Bura Lesso

The plaintiff sued the defendant for the loss of his bull as a result of a fight with the defendant's bull. The court held that there was no evidence that the bull was known to be savage or to have propensity for attacking its own species. As the animal was a domestic breed there was no responsibility on the defendant to guard against unforeseen attack.

Buckle v Holmes

The defendant's cat strayed to the plaintiff's land and killed fowls and pigeon kept there. The defendant was unaware of the cat's mischievous tendencies. The court held that he was not liable.

Brock v Richards

The defendant's horse was kept in a field adjoining a highway. The horse leapt over the hedge bordering the highway and landed on the tank of the plaintiff's motorcycle. The plaintiff proved that the defendant knew that the horse had to stray. The court held that this was not sufficient to prove scienter. The plaintiff must prove that the defendant was aware that the horse was prone to jumping on the highway.

LIABILITY FOR THE ESCAPE OF FIRE

Common law imposes strict liability for the negligent use of fire, which leads to its escape and results in damage to the property of others. Liability was modified by Fire Prevention Act 1745 which excluded liability where the fire was accidentally started.

Although the defendant could escape liability where the fire was started accidentally, where it spread as a result of the negligence of the defendant, common law imposed liability.

In *Filliter* the court held that the Act did not apply where the fire was started intentionally but spread unintentionally without the negligence of the defendant, common law imposed liability.

The rule in *Rylands v Fletcher* applies to fires intentionally started. In **Musgrove v Pandelis** it was held that the Act did not apply to fire started in circumstances that imported the application of the rule in *Rylands v Fletcher*.

In the case of **Mason v Levy**, the court held that the rule in *Rylands v Fletcher* applied to fires intentionally brought on the defendant's premises as well as materials kept under conditions involving a substantial risk of fire. In that case it was flammable material that was kept in a congested store.

Statutory authorities are not liable for the escape of fire which is kept by them in the pursuance of their statutory duties.

In **Balfour v Barty King**, the court held that the defendant could escape liability where the fire was started by a stranger. The stranger had to be someone, over whom the defendant had no control. In that case the fire was started as a result of the negligence of court actors invited on the land by the defendants and as such they were liable.

Accidental Fire

In Filliter v Phippard, the word accidental was interpreted to mean fire produced by mere chance or incapable of being traced to any cause.

Collingwood v Home & Colonial Stores.

A fire broke out on the defendant's premises and spread to those of the plaintiff. It originated in the defective condition of the wiring on the defendant's premises. There was no negligence



on their part. The use of electric wiring was held to be ordinary and reasonable use of premises and the defendants were not liable under the rule in *Rylands v Fletcher*.

Musgrove v Pandelis

The plaintiff occupied room over a garage and let part of the garage to the defendants who kept a car in there. The defendant's servant who had no experience as a driver started the car and out of no negligence on his part, the petrol in the carburettor caught fire. He could have shut the tap connecting the tank to the carburettor but he did not for lack of experience. The fire spread and damaged the plaintiff's property. The defendants were held liable.

Goldman v Hardgrave

Fire started naturally but spread out of negligence. Act did not apply,

NOTE; The Fire Prevention Act of 1774 is not applicable in Uganda. Therefore Uganda courts still apply the common law and the defence of accident does not apply.

Uganda Motors v Wavah Holdings.

Per; **JUDGMENT OF PLATT, J.S.C.**

Having heard counsel for both parties, it would seem that a central issue related to the application of the doctrine of **res ipsa loquitur**. As I have pointed out in the introductory paragraph of this judgment, the learned judge was faced with little or no evidence as to the cause of this fire. The argument concerned the application of either the doctrine of **Res Ipsa Loquitur** or the **Fires Prevention (Metropolis) Act 1774**. For the appellant, it was contended that the doctrine did not apply while the **Act of 1774** did apply as an **Act** of general application. For the Respondent it was of course asserted that the Act of **1774** did not apply. The common law was relied upon which therefore brought the doctrine into play. The effect of the argument is this. At common law, if a fire began on a man's own premises, by which those of his neighbor were injured, the latter in an action brought for such injury, would not be bound in the first instance to show how the fire began, but the presumption would be (unless it were shown to have originated from some external cause) that it arose from the neglect of some person in the house. (See Lord Tenterden C.J. in **BECQUET vs. McCARTHY** set out in **MASON vs. LEVY AUTO PARTS (1967)** 2 ALL ER p. 62

& 67, see also Lord Wright's speech in **COLLINGWOOD vs. HOME AND COLONIAL STORES** (1936) 3 ALL E.R. 200,203). The common law, therefore, held the person upon those premises the fire originated liable if he was negligent, and presumed him negligent if the cause was not known, unless that person could show that the fire was caused by a stranger or act

of God. On the other hand the **Act** of 1774 relieved him of liability if the fire started accidentally. There is no burden on the Defendant of disproving negligence, that the proof of negligence would be on the Plaintiff. If the **Act of 1774** did not apply there would be a burden of disproving negligence on the part of the Defendant, the Plaintiff being able to rely on the doctrine. It can be seen then that grounds 2, 4 and 5 can be answered by deciding whether the doctrine of **Res Ipsa Loquitur** applied or the **Act** of 1774.

There seems no doubt that the **Act** of 1774 did not apply. Its application stems from the fact that although it was originally an **Act** to control actions due to fire damage in

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London, it was applied throughout England. It therefore had some claim to be an act of general application. In the **Judicature Act** (Cap 34) of 1962, section 2 declared that the jurisdiction of the High Court was to be exercised subject to the constitution:-

a) in conformity with the written laws in force on 9th October 1962 including the laws applied by the act, or may hereafter be applied or enacted;

b) subject to such written laws and so far as the same do not extend or apply –

(i) in conformity with the substance of the common law, the doctrines of equity and the statutes of general application in force in England on the 11th August 1902

(ii) (not

applicable.) c)

Provided that the said common law, doctrines of equity and statutes of general application shall be in force in Uganda only so far as the circumstances of Uganda permit, and subject to such qualifications as local circumstances may render necessary.”

The argument presented by Mr. Mugisha concerned the existence of the **Act of 1774**

as a statute of general application on 11th August 1902. The submission of Mr. Tumusingize concerned the inapplicability of the **Act of 1774**; he said that the common law had greater sense in Uganda than the Act of 1774.

But these arguments are with respect beside the point. The reference to Acts of general applicability was deleted from the 1967 **Judicature Act**. Such acts consequently no longer apply to Uganda. Section 3(2) of Act 11 of 1967 provides for the supremacy of the Constitution and continues that the jurisdiction of the High Court shall be exercised:-

a) in conformity with the written law including any law in force immediately before the commencement of this act;

b) subject to any written law and in so far as the same does not extend or apply, and in conformity with,

i.

the common law and the doctrines of equity;

ii.
any established and current customs or usage; and

iii.
(matters of practice and procedure)



c) where no express law, or rule is applicable to any matter in issue before the High Court in conformity with the principles of justice, equity and good conscience;

(3) The applied law, the common law and the doctrines of equity shall be in force only in so far as the circumstances in Uganda and of its people permit and subject to such qualifications as the circumstances may render necessary.

The “*applied law*” refers to the laws applied in the Act (see Sec 47 of Act 11 of 1967 and the schedules). They follow on from the schedules to the Judicature Act of 1962. These are not the Acts of general application which later acts are not specified in the schedules of the **Judicature Act** of 1962. The reference to 11th August 1902 in the 1967 **Act** is that in section 47 and is related to amendments in scheduled **Acts** before that date. The conclusion can only be that the **Acts** of general application no longer have any place in the jurisdiction of the High Court, and that is perhaps as it should be.

On that basis then, the appellant’s arguments fell to the ground as based on the **Act of 1774**, and the learned Judge turns out to have been right for not applying it, though he gave no particular reasons for not doing so. The Judge was right to rely on the doctrine of **Res Ipsa Loquitur**, and there is no place for the concept of the Appellant’s liability being excluded if the fire arose accidentally. Presuming that the appellant was guilty of negligence, the burden would fall on it to show that it was not negligent, which would involve such notions as to whether any steps had been taken to prevent fire. It would in all probability necessitate the disclosure why the fire had occurred, or at least to show that it must have been accidental. It would also be a good defence if the fire had been caused by an external cause.

NUISANCE

Nuisance is the interference with an occupier’s possession and enjoyment of land. It covers any physical interference with enjoyment and use of land as well as non-physical interference for example pollution.

The law of nuisance was developed prior to the development of the law of negligence. Negligence has influenced the scope of nuisance to some extent. It introduced the notions of fault that were originally outside the scope of liability for nuisance. Secondly, replaced nuisance as a basis for physical harm in cases of

isolated as distinct from continuing occurrence.

The important feature of nuisance is that of focus on the harmful result rather than the conduct causing the harm. Nuisance therefore only describes the nature of harm that will attract liability as distinct from the conduct causing such harm. This distinguishes it from the aspect of the law of tort, which focus on conduct rather than result.

Nuisance emerged as tort in respect of any interference with the beneficial user of another's land be of exercise of natural rights or enjoyment of sacristies over land. It was developed in the 13th century. At that time it covered interference with possession and which did not take



place on the kind of self. In the 15th century in a choir on the case for nuisance was developed. This choir could be brought by persons who did not have title to the land in question.

PUBLIC NUISANCE

Public nuisance involves obstructions, inconveniences or annoyances or damage to the public in the exercise of common rights. In its earliest form it extended to obstruction of public rights of way on the highway or navigable water. In the 13th Century it was extended to a wider variety of annoyances that were not necessarily physical for example emitting smoke or fouling water. It was criminal until the 16th century when the court allowed an individual to bring an action in public nuisance where he could prove that he suffered greater hurt or inconvenience than every man had. This characteristic of the tort has been retained through the ages.

An individual may sue in respect of an obstruction of public rights although no rights to have and have been violated. It covers personal injury.

Kitamirike v Mutagubya

The defendant left a car parked on the road when it broke down. It was not properly parked and the plaintiff suffered injury as a result. Court held that the defendant had committed a public nuisance by obstructing the road.

Arima Nantongo v Hiral Mohammed

The defendant's oil tanker broke down and parked it in Nakivubo area. The residents tried to siphon the fuel and they were injured when it ignited. The court held that parking the petrol tanker constituted a public nuisance. The court defined a public nuisance as some unlawful act or omission which endangers the lives, health, safety or comfort of the public or some considerable section of the public is obstructed in the exercise of a common right.

An individual could bring an action if he could show that he had suffered a particular injury to himself beyond that which is suffered by the rest of the public.

- He has suffered direct injury.
- The injury is of substantial nature

AG v Kafeero Mambule

Crian Singh

Lorry parked slightly on the road- obstructed use of the road and constituted a public nuisance.

Mombasa Auto Services v Esso Petroleum,

Noise which is ordinary, un-inseparable from ordinary conduct of particular

business does not constitute nuisance.

Public nuisance is a criminal offence under S 156 of PC therefore, a private individual may Only sue when he has suffered greater damage over and above the general inconvenience.

Arima Nantongo

Tindarwesire v Kabale Town Council



This requirement is justified on the ground that unless the plaintiff can prove some special or particular damage to himself over and above the public inconvenience then the public nuisance should be redressed in the name of the general public by the state.

Some authorities hold that the particular damage must be distinct from general inconvenience both in kind and in degree. This is a very strict approach which would prevent recovery even in extreme cases. The more liberal approach is to allow a plaintiff to recover so long as the injury and inconvenience was appreciably more substantial, more direct and immediate without necessarily differing in nature. This includes all personal injury as in *Nantongo*, *Mutagubya* as well as pure economic loss as in *Kafeero*, *Nambule*. The modern approach is to allow a plaintiff to recover whenever his injury goes beyond the obstruction of his individual theoretical right shared by the general public.

The damage of the plaintiff must be direct. Where it is remote, he cannot recover. Direct here refers to being distinct from general not as in weigh around.

Tale (lyle) Industries.

The defendant constructed ferry terminals in the thamus which caused silting. This obstructed access of large vehicles to the plaintiff's ferry and the plaintiff had to spend large sums of money on dredging operations. The court held that they could succeed in public nuisance. The interference caused by silting was in respect of a public right of navigation which the plaintiffs enjoyed along with the river users. The expenditure incurred by the plaintiffs was particular damage sufficient to entitle them to bring an action in public nuisance.

PRIVATE NUISANCE.

Private nuisance is the interference with a person's use and enjoyment of land. Those protected by nuisance include the use of land for some physical purpose as well as the comfort and enjoyment of land. The interference may take some form of physical damage as well as non- physical interference. It should be noted that in nuisance as opposed to trespass, the thing causing the interference is outside the land of the plaintiff.

Alleged interference with the beneficial interest in land must be substantial and unreasonable.

In **Turnley (1862) 3 BOS 66**, Bramwell said, "life in organised society and especially in populous communities involves unavoidable clash of individual interests. Practically all human activities, unless carried on in wilderness, interfere to some extent with others or involve some risk of interference and these interferences range from trifling annoyance to serious harms. It is an obvious truth that each individual in a community must put up with a certain amount of

annoyance, inconvenience and interference and must take certain amount of risk in order that all may get together. 'The very existence of organised society depends on the principle of give and take, live and let live.'

The plaintiff can only recover whenever the interference is of such magnitude that any member of society cannot reasonably be expected to bear.

The law must strike a balance between conflicting interests of neighbours and not allow one to subordinate the interests of another.

Lord Wright in *Sedleigh-Denfield*. 'A balance has to be maintained between the right of the occupier to do what he likes with his own and the right of his neighbour not to be interfered

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with In determining reasonableness of the interference the court must consider the convenience of the defendant as well as the comfort of the plaintiffs.'

The court also takes into account the harm caused to the plaintiff's beneficial interest in land. This is judged according to the nature and duration of the interference. The alleged interference must be such as materially interferes with the ordinary enjoyment and use of land. The law does not take into account individual extraordinary tastes and comforts. The gravity of the harm depends on both the extent and also on the nature of injury. Where it consists of physical damage to property it may not be easily justified as an ordinary inconvenience in society. In case of physical damage the courts treat it as substantial although it may be small in extent. Conversely, mere discomfort is considered as slight interest in extensional continuing.

The courts must also take into account the continuity or otherwise of the interference. However, the length of duration of the nuisance is not conducive.

The nature of the neighbourhood is also relevant in determining the extent of comfort a plaintiff is entitled to. Where the defendant undertakes an activity in an area, which is not, suited to that activity, it is very likely that any interference will amount to nuisance. Similarly, where the plaintiff moves to an area prone to nuisance he can only recover in respect of unreasonable increases in discomfort.

From the above, it is clear that the test of deciding whether an activity is nuisance is objective. The activities complained of must be a cause for discomfort to an ordinary person.

Similarly, a person cannot extend his rights by making his property abnormally sensitive at the expense of others. *E and African Telegraph v Cape Town Tramways* 1902

In *Nor-video v Ontario Hydro* (1978) DLR 221, an open air cinema sought an injunction in respect of interferences from the flood light in a right race track. Court held that the abnormally sensitive use to which the plaintiff had put his land did not warrant protection at the expense of others.

The court also considers the nature of the defendant's activity. The importance of the activity and the general benefit to society must be taken into account. Ordinary usages of land, which may be an inconvenience to other landowners may not necessarily be actionable. However, the fact that act provides a benefit to the general public may not justify an interference with private rights to use and enjoyment of land.

Where the defendant's conduct is for the sole purpose of the plaintiff's property, it is actionable irrespective of the fact that it may not be substantial. In *Hollywood Silver Fox Farm v Emmett*, (1936) 1 ALL ER 825, the defendant spitefully fired guns in close proximity to the plaintiff's breeding pens in order to cause his silver foxes to

miscarry. The court held that although the conduct was not extremely unreasonable it constituted a nuisance in light of the defendant's intention.

In *Christie v Davie*, a defendant who hammered and beat trays against a wall with the intent of disrupting the plaintiff's music lesson was held to be liable in nuisance. This in spite of the fact that the noise was ordinary. The malicious intent was the deciding factor.

The standard of reasonableness differs from the standard as used in negligence. Liability in nuisance is strict in sense that exercise of reasonable care by the defendant would not protect



him from liability of nuisance. Similarly, a defendant may put his land to reasonable use in spite of the fact it may result in harm to neighbour.

Nuisance has been affected by the law of negligence to some extent. However, a failure to take reasonable steps to avoid interference may be nuisance **Leeman v Montagu**

The right to sue in respect of nuisance rests in a person with actual possession of land. A person with a reversionary interest can only sue where the nuisance resulted in permanent damage on the land. He may also sue in respect of perpetual nuisance. The right extends to persons who have actual possession of the land whether or not they have an estate in the land. It also rests in persons who have servitude over the land. In **Warren v Brown**, it was held that the possessor of servitude might obtain an injunction if he can prove substantial interference with the right. The right is paramount even as against the owner of the servient tenement.

A licence without possession cannot maintain an action in nuisance. In *Khoms*, the court held had extended the category of those who can recover to include licences, harassing calls at her mother's home. In *Hunter v Canary Wharf Ltd*, this was overruled.

Where an occupier is entitled to recover, the quantum of damages recoverable is not affected by the size, commodiousness and value of his property but cannot be increased merely because more people are in occupation and therefore suffer greater collective discomfort. If more than one person has an interest in the property, the damages will have to be divided among them.. but the damages cannot be increased by the fact that the interests in land are divided, still less according to the number of persons residing in the premises.

Who can be sued?

A person who creates a nuisance by some act or misfeasance as opposed to non-feasance is liable in respect of it. It is not relevant whether he has occupation of premises or not.

The occupier of premises where the nuisance originates is liable for as long as the occupancy lasts. Where the nuisance is created by a person who is employed by the occupier, the occupier is liable according to the ordinary rules of vicarious liability.

An occupier is not liable for nuisance, which is created by a trespasser or an act of nature unless he adopts it for his own purposes or convenience.

An occupier is liable if after acquiring knowledge of the existence of the nuisance fails to take reasonable steps to remove it (or a bat et)

In **Sedleigh v Denfield**, the defendant occupied land on which there was a ditch. A trespasser laid a pipe in it with a grating designed to keep out leaves but placed in such an ill position that it caused a blockage of the pipe, when a heavy rain occurred and in consequence the plaintiff's adjacent land was flooded. The rain storm

occurred nearly 3 years after the pipe was placed there and the defendant's servant who was responsible for clearing the ditch should have appreciated the danger of flooding. The court held that the occupier was liable.

DEFENCES TO NUISANCE.

Statutory Authority.

A defendant would not be liable in nuisance if the offending activity is being carried out under the powers conferred by statute. It usually covers activities that have a public interest.

Allen v Gulf oil . The statute regulates the loss of the undertaking. It may provide for compensation for those injured or it may not.



Road Construction Works

Kafeero Nambule

However, the statutory power should be exercised without negligence for the defence to apply. The offending activity must be expressly authorised or at least incidental to the performance of the statutory authority.

Where the granter of the statutory authority has a choice of undertakings, he must choose the one that poses the least risk to private individuals.

In order to successfully rely on the defence the defendant must prove that harm caused was an inevitable consequence of carrying out statutory power. Inevitability must be judged according to the state of scientific knowledge. This takes into account the cost of avoiding the injury. *Allen v Gulf Oil*. The court should be slow to subordinate private interests to the general interests of consumers of particular products.

Prescription.

According to the author of **Ckark and Lindsell on Tort**, the right to commit a nuisance may be acquired by prescription as an easement in cases where such right is capable of being an easement. After 20 years of user the nuisance is legalised retrospectively by grant of the owner of the land. There must be certainty and uniformity in measuring the user by which extent the right is to be acquired. None for smoke or shell or noise.

In **Hermannon v Welsis (1894) s ch 1** court held that the defence did not extend to branches and roots causing nuisance there was perpetual change in the extent of the inconvenience suffered.

Prescription does not apply where the nuisance was not actionable or concealed from the plaintiff.

Prescription does not legalise a public nuisance since it is an offence against common law.

Sturges v Bridman 1979

A confectioner had for more than 20 years used large pistes and mortars in the park of his premises which was adjacent to the garden of a physician. The noise and vibration were not a nuisance at that time. Later the physician thought a consulting room at the end of his garden and the noise and vibrations then materially interfered with the pursuit of his practice.

The court held that the nuisance had not been actionable. Prescription, therefore, did not apply.

Remedi

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Damag

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The plaintiff may recover damages as well as infliction. The injury has to be reasonably foreseeable according to the rules of causation set out in the Wagon Mound case.

Injunction

General rules of equity apply damages not invoked self help. Where not continuing there should be substantial damage.

Coursework extract on *Private Nuisance*;



The common tort of private nuisance jealously guards the interests of property owners," per LLB II student.

Using case law, discuss the veracity of this statement and show the implications, if any to those who may not be able to establish an interest in property.

Private nuisance is the tort of protecting the plaintiff's interest in the use and enjoyment of land. It was defined by *Windeyer J in Hargrave v Goldman* as an unlawful interference with a person's use or enjoyment of land or of some right over or in connection with it.

Lord Lloyd in *Hunter v Canary Wharf* stated that private nuisances are of three kinds. (1), nuisance by encroachment on a neighbour's land (2) nuisance by direct physical injury to a neighbour's land and (3) nuisance by interference with neighbour's quiet enjoyment of his land.

It was said by Lord Wright in *Sedleigh-Denfield v O'Callagan* that the forms that nuisance take are protean. The following are some of the examples of the above kinds.

An example on encroachment on somebody's land is the case of *Smith v Girdy* where trees overhang the plaintiff's property and interfered with his apple trees growing in the orchard. this was held to be a nuisance the case of *Sedleigh-Denfield v O'Callagan* is an example on physical damage. In this case the defendants had a ditch on their land and after a heavy rainfall the pipe in the ditch was blocked with refuse and as a result the plaintiff's land was flooded by the water coming from the ditch. It was held that there was a nuisance.

On interference with the plaintiff's quiet enjoyment of his land, examples include smells, smoke, dust and noise among others. In *Halsey v Esso Petroleum*, nauseating smell from the defendant's boilers and noise from the boilers and trucks which made the plaintiff sleepless were held to be a private nuisance.

From the above examples it follows therefore that those protected by private nuisance include the use of land for some physical purpose as well as the comfort and enjoyment of land. The interference, therefore, may take some form of physical damage as well as non-physical interference.

There are some conditions to be fulfilled and requirements to be met for one to successfully sue. These requirements depend on whether the complaint is about physical damage or amenity damage.



On encroachment and physical injury the complainant must prove that the encroachment or physical injury caused material injury to the property. It was stated by *Veale J in Halsey v Esso Petroleum* that liability for harmful deposits could be established by proving damage by the deposits to the property in question provided of course that the injury was not trivial. In this case acid smuts emitted from the defendants' boilers damaged the plaintiff's clothes and car. The defendants were held liable in private nuisance.

In proving damage, the nature of the neighbourhood is not considered. In *St. Hellen's Smelting Co. v Tipping*, the defendants carried out smelting works upon land near to the plaintiff's premises. The works emitted noxious gases and vapours which damaged the plaintiff's hedges and trees, sickened his cattle and interfered with his beneficial use of land. i holding the defendant's liable for nuisance, it was held that nuisances resulting in material injury or financial harm cannot be excused regardless of the character of the neighbourhood into which they occur.

However such damage caused should have been reasonably foreseen. In *Cambridge Water v Eastern Countries Leather*, Lord Goff stated that foreseeability of harm is a prerequisite of the recovery of damages in nuisances. Under this area the plaintiff has to prove not only that he suffered material injury but also that such harm was foreseeable by the defendant.

For amenity damage where there is interference such as noise, smell, smoke and dust among others which interfere with use and enjoyment of land without physical damage to the property, the test applied is a different one.

The plaintiff can only recover whenever the interference is of such magnitude that any member of society cannot reasonably be expected to bear. Lord Wright in *Sedleigh-Denfield v O'Callagan* stated that a balance has to be maintained between the right of the occupier to do what he likes with his own land and the right of his neighbour not to be interfered with. He further stated that it is impossible to give any precise or universal formula but it may be broadly said that a useful test is

perhaps what is reasonable according to the ordinary usages of mankind living in society or more correctly in a particular society.

In *Halsey V Esso Petroleum*, it was stated that in proving interference with quiet enjoyment, there is no absolute standard to be applied. It is always a question of degree whether the interference with comfort is sufficiently serious to constitute a nuisance. This is because in an



organised society everyone must put up with a certain amount of discomfort and annoyance with the legitimate activities of his or her neighbours.

From the above it therefore follows that in determining interference with comfort, courts apply an objective test. in *Halsey v Esso Petroleum* it was held that it must be an inconvenience which materially interfered with the ordinary physical comfort of human existence according to plain, sober and simple notions among ordinary people.

The following factors are taken into account when determining the reasonableness.

1. The nature of the locality. This is important in determining the extent of comfort a plaintiff is entitled to it was said in *St. Hellen's Smelting Co v Tipping* that one should not expect the clean air of the Lake District in an industrial town.

In *Sturges v Bridgman*, it was also stated that what would be a nuisance in Belgravia square would not necessarily be so in Bermondsey.

In *Laws v Florinplace Ltd* , the defendants opened a sex centre and cinema club which showed explicit sex acts. local residents sought an injunction and it was held that the use constituted a private nuisance.

Similarly in *Thompson-Schwab v Costaki*, the plaintiff lived in a respectable residential street in London. the defendants used a house in the same street for purposes of prostitution. it was held that having regard to the character of the neighbourhood the defendants use of the property constituted a nuisance.

In *Halsey v Esso Petroleum Co*, the plaintiffs house was in a residential area which was adjacent to an industrial area. The plaintiff complained of nauseating smell from the defendant's premises and of noise from boilers which caused the plaintiff's windows and doors to vibrate and prevented him from sleeping. In holding the defendants liable in private nuisance, Veale J stated that nuisance by smell or noise depends on the degree of interference with comfort. That the character of the neighbourhood is very relevant and all relevant circumstances have to be taken into

account. What might be a nuisance in one area is by no means necessarily in another.

2: to be unreasonable, there must be a continuous interference over a period of time with the claimant's use of land. It was held in *British Celanese Ltd v AH Hunt* that an isolated occurrence could not constitute a nuisance.



In *De Keyser's Royal Hotel v Spicer Bros Ltd*, noisy pile driving at night doing temporary building works was held to be a private nuisance.

3: sensitivity of the claimant

In **Walter v Selfe, Knight Bruce VC** stated that it must be an inconvenience materially interfering with the ordinary comfort physically of human existence, not merely according to elegant and dainty modes and habits of living but according to plain, sober and simple notions among the English people.

In **Robinson v Kilvert**, the plaintiff's claim was for damage to abnormally sensitive paper stored in a cellar which was affected by heat from adjoining premises. The claim failed because ordinary paper would not have been affected by the temperature.

4: The utility of the defendant's conduct.

The court considers the importance of the activity and the general benefit to society. Ordinary usages of land which may be an inconvenience to other landowners may not necessarily be actionable. In **Harrison v Southwark water**, building work carried out at reasonable times of the day did not amount to a nuisance.

5: Malice.

Where the defendant's conduct is for the sole purpose of the plaintiff's comfort, it is actionable. In **Christie v Davey**, the defendant lived next door to a music teacher. He hammered and beat trays, banged the walls with intent of disrupting the lesson. It was held to be a nuisance despite the fact that noise was ordinary. However the decision would have been different if the acts had been innocent since motive is generally irrelevant in tort.

6: interference with the use of the land or enjoyment.

Interference with Television signals have been held not to be a nuisance in **Hunter**

v Canary Wharf. Lord Hoffman stated that the general principle is that at common law anyone may build whatever he likes upon his land. If the effect is to interfere with the light, air, or view of his neighbor, that is a misfortune.

From the above, it can be asserted that the tort of private nuisance is not one of strict liability. It is not actionable per se. This means therefore that an alleged interference with the use of



enjoyment of land must be substantial and reasonable. Therefore, it is not that the tort of private nuisance really jealously guards the interests of property but there are certain conditions and requirements to be met as noted above.

Who can sue?

The tort of private nuisance protects those persons who have an interest in the land affected, so only an owner or occupier can sue. Until recently, a person who did not have a proprietary in the land could sue.

In **Malone v Laskey**, the wife of a licensee whose enjoyment of the land was interfered with could not sue in nuisance as she did not have a proprietary interest. In this case the plaintiff was using a toilet. The lavatory cistern fell on her head because of vibrations from machinery on adjoining property. Her claim failed as she was a wife of a mere licensee.

In **Khorasandjian v Bush**, the majority of the Court of Appeal departed from the principle in *Malone* and enabled a young daughter of a house owner to sue in private nuisance despite having no interest in land.

However, in **Hunter v Canary Wharf** the above case of *Khorasandjian* was overruled and the position in *Malone* case was reinstated. Lord Cooke stated that a person who has no right to the land affected by a nuisance cannot bring an action in private nuisance. The tort of nuisance was directed against the plaintiff's enjoyment of his rights over land and ordinarily a person with a right to exclusive possession of the land affected such as a freeholder, a tenant in possession or licensee with exclusive possession could sue.

A mere licensee or occupier has no right to sue. However, the court further recognised as per *Lord Hoffman* that the wife of a home owner would be able to sue as she has a beneficial interest in the matrimonial home.

In conclusion therefore, the tort of private nuisance only guards the interest of property owners subject to fulfillment of certain conditions. For interference

relating to encroachment and physical injury, the claimant must prove material damage done to the land but such damage should not be just trivial. The plaintiff can sue under undue interference with quiet enjoyment and comfort where the defendant's action is unreasonable. However, there are factors to be taken into account to determine what is reasonable as discussed above. The tort only guards



the claimants who have an interest in land and those without any interest or right in land cannot sue. More so, those without interest in property can only sue in negligence where there is substantial damage caused to them.

OCCUPIERS LIABILITY

Occupier's liability was developed before the modern law of negligence took its previous form in 1931 with the decision in *Donoghue v Stevenson*.

Common law imposed a duty of care on an occupier of premises in respect of four classes of people, invitees, licensees and trespassers and those who come in respect of contract. The standard of care expected of the occupier in respect of the above categories differed.

According to *Winfield and Jolowich*, the highest standard was owed to the one who entered the premises in pursuance of a contract. The occupier had a duty to exercise reasonable care and skill to make the premises safe.

Second it was the invitee, who entered the premises on business of interest to himself and the occupier. The occupier was under a duty to prevent damage from unusual damages of which he knew or ought to have known.

Third was the licensee, who entered with the express or implied consent of the occupier. The occupier had a duty to warn him of any concealed damages of which he actually knew.

Lastly there was a trespasser who had no consent to enter the premises. The lowest standard of care was expected of the occupier in the sense that he was only expected to abstain from intentional or reckless injury to him.

The distinction between contractual entrants, invitees, and licensees was very pronounced in respect of injury as a result of the state of the premises.

The courts were of the view that the distinction between the classes only applied where the injury was as a result of the state of the premises. Where the injury resulted from an activity being carried out on the premises the general law of negligence applied and there was no distinction. This state of law was reformed by the Occupiers Liability Act of 1957

Application in Uganda

Wavah Holdings v Uganda Motors

The Act abolished the distinction between licensees and invitees and the occupancy duty and activity duty, S.1

“ The rules in the Act shall have effect in place of the rules of common law, to regulate the duty which an occupier of premises owes to his visitor in respect of dangers due to the state of the premises or to things done or omitted to be done to the premises.”

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The Act regulates liability to visitors which concerns the old categories of invitees and licensees. Common law covers liability to trespassers as well as the act of 1984.

Who is an occupier of premises?

the Act does not define an occupier and the rules of common law apply to determine whether one is an occupier or not.

In the case of **Wheat v Lacon and Co**, the word occupier was held to denote a person who has sufficient control of premises. The person need not have exclusive or entire control of the premises. The fact that a person has immediate supervision or default control is sufficient to make him an occupier of premises. There is no requirement that the person has any estate in the land in question to be an occupier.

The issue whether one is an occupier or not is a question of fact which depends on the circumstances of each case especially on the nature and extent on the occupation or control which a party has over the premises.
A contractor may qualify as an occupier of premises.

Visitors.

These are persons who are present on the premises with the express or implied consent of the occupier of the premises. This include persons who enter the premises on the basis of a right granted by law.

Permission to enter open premises may be express or implied. The presence of implied consent is a question of fact to be proved by the one who seeks to rely on it. Where the premises are open to the public there is implied consent for persons to enter upon such premises eg shops etc
An invitation to the general public is an implied invitation to particular individuals.

Bakaboineki v Bunyoro District Administration

The defendant's predecessor in title had invited the general public to celebrations to mark the return of the lost counties of Bunyoro Kitara. The plaintiff attended the celebrations and while the celebrations were going on he went off on his own and fell in an open pit latrine.

The court held that the open invitation to the general public in form of a circular was an implied invitation to the plaintiff and as such he was an invitee who was owed a duty of care under the law.

Persons seeking to see the occupier eg people soliciting for charitable contribution are visitors unless they are expressly forbidden from entering the premises.

In the old case of **Lowery v Walker 1911 AC 10**, the defendant owned a farm. The public used a short cut through his land to reach the railway station for 35

years. On some occasion he had confronted them but did not take any legal proceedings. The plaintiff was attacked by a savage horse while using the short cut through the defendant's land. The court held the occupier by his acquiescence in the use of his premises by trespasser had impliedly consented to such use and was liable to the plaintiff.



However, this position was changed by the decision in **Edward v railway Executive 1952 AC Gorrard L.J** “ Repeated trespass itself confers no license, how it is to be said that the occupier has licensed what he cannot prevent.”

The plaintiff aged 9 years got through a fence dividing a recreation ground and the railway. He climbed up the embankment to fetch a ball on the other side of the railway and was injured by a passing train. For many years, children had climbed through the fence by breaking the wire to slide down the embankment and the railway executive had repaired it whenever he saw the damage. The court held that repeated trespass does not confer a licence and the boy was a trespasser.

The duty owed to a visitor does not extend to parts of the premises which he has no permission to go.

In **Bakaboineki's** case, the court held that by fearing the open ground and crossing the foot path the plaintiff was a trespasser.

Permission to enter the premises may be granted by an employee of the occupier acting in the scope of duty. Even where the employee is acting contrary to instructions, he may be acting in the scope of employment according to the rules of vicarious liability.

Stone v Taffe 1974 WLR 575

An invitation to enter premises may be limited. In cases of implied consent, it applies to areas where the visitor may reasonably be supposed or likely to go.

Mersey Docks and Harbour Board v Procter

Lord Care. “ When you invite a person into your house to use the stairs, you do not invite him to slide down the barristers”

Bakaboineki

Making wrongful, dangerous and improper use of premises made him a trespasser. However, an involuntary encroachment outside the premises caused by negligence of the occupier does not turn an invitee into a trespasser.

Where an invitee is a child the courts impose a higher standard on the occupier. Where a child trespasses as a result of the occupier's negligence he is owed a duty of care as an invitee.

Phipps v Rochester

Under common law, the standard of care required of an occupier depended on the nature of permission granted. Where the plaintiff was an invitee, the occupier was under a duty to protect him from unusual dangers of which he was aware or ought to be aware.

Where the plaintiff was a licensee it was on the premises pursuant to implied

permission the occupier's duty was limited to warning him of concealed danger of which he was aware. This destruction was highlighted in **Horton V London graving Dock**

The distinction was removed by the 1957 Act in England and in Uganda Ssekandi advocates for similar treatment in **Kibedi v Uganda Sugar Corporation.**



There is now a general duty to visitors which is to ensure that the premises are reasonably safe for the purpose for which permission for their use was given. In determining whether the duty has been complied with the following factors should be taken into account.

- The gravity and likelihood of the probable injury
- The circumstances of entry onto premises
- The nature of the premises
- The knowledge which the occupier ought to have of the presence of property or persons on the premises
- The age of the entrants
- The ability of entrants to appreciate risks

The burden of eliminating the danger as contrasts with the magnitude of the risk of the injury. Knowledge of the danger by the occupier is no longer the determining factor when dealing with occupiers liability. Where the danger is simple one which is apparent knowledge of its existence on the part of the visitor is sufficient. Also where the occupier has given notice to the visitor of the existence of the danger, he discharges his duty to him.

In **Roles v Nathan**, court held that where an occupier of premises warned the chimney sweep of fumes he was not liable as occupier for injury as a result. However, such notice must be sufficient to ensure the reasonable safety of the entrant on the premises.

Where the visitor does not have the capacity to appreciate the presence of the danger or avoid of, the occupier is under a duty to remove it entirely in order to discharge his duty.

In order to escape liability, the occupier must prove that the visitor was able to appreciate both presence of the hazard and the magnitude of the risk posed by it. The hazard must also be present to the visitor's mind at the time he is required to protect himself. Where the visitor willingly accepts risks the duty the occupier is discharged. The visitor must have done something that is tantamount to contributory negligence.

An occupier may also escape liability in respect of a fireman/police where the latter assumed a specific risk. This is contrary to the United States where firefighters cannot recover even if the fire started intentionally.

Ogwo v Taylor

In **Ashdown v Williams**, The defendants posted a large notice to the effect that persons entering and crossing railway lines did so at their own risk and would not recover for negligent injury. An employer of a nearby firm was negligently injured by shunting on her way to work. The court held that she had consumed the risk

and could not recover.

The occupier also has a duty to control the entrants from his premises for the safety of others. In **Glasgow Corporation v Muir**, a manager of tea room allowed picnickers to carry a tea can was held liable when it scalded other entrants on the premises.

The court must also take into account the degree of care **owed to children**. An occupier should be prepared for children to be less careful than adults and should guard them against all ordinary risks.



The standard of safety due to children must be applied with due regard to their physical power and mental facilities which the occupier knew or ought to have known they possessed.

A child may see a warning but is incapable of comprehending it.

Phipps v Rochester, in that case the court held that although the standard of duty of the occupier is high, he is entitled to assume that the children will be accompanied by responsible adults who will warn them of any dangers on the premises.

In **Latham v Johnson**, the court held that the occupier is also under a duty not to lay traps to allure children to trespass in order to qualify as an allurement or trap if it must be both fascinating and fatal. It is also not enough that the object in question is attractive, it must also have a character of hidden danger. **Glasgow Corp v Tayler**, poisonous berries in botanical garden held to constitute an allurement to children.

The occupier may assume that children of tender years be accompanied.

Where the visitor is a contractor, the occupier, may assume that he appreciated the dangers that are ordinarily incidental to the job. He should also satisfy himself of the safety of the site and determine how he will perform his tasks. An occupier would not be liable where the contractor himself chose an unsafe manner of carrying out his duties and injured his employer.

Ferguson v Welsh, where the contractor or entrant knows more about the work for which he requires the premises than the occupier should ensure that it is suitable for such work.

The duty of an occupier is to take reasonable steps to ensure the safety of the premises for the lawful entrants therein. He may delegate the duty to make it safe to an independent contractor. Where, he delegates he is not liable for negligence of the independent contractor.

Haseldine v CA Dan & son

However, he must take reasonable care in selecting and supervising the independent contractor. **Davie v New Merto**. This is limited to technical aspects of the premises that he is not expected to repair on his own. Some authorities hold that he is under a non derogable duty for those aspects which are not technical and which he should undertake himself.

In *Viral Housing Comm.. (1976) 1 NSWLR 388*, CA held that the cleaning of stairs was non technical and would not be delegated occupancy and activity duty.

Under common law there is also a duty in respect of activities that are carried out on the premises of the occupier as opposed to the condition of the premises as such.

The Act of 1957 imposes a duty in respect of the state of premises as well as the activities being carried on the premises. However, this does not affect the common duty.

TRESPASSERS

Under common law an occupier of premises has a right to undisturbed possession without any concern for safety of intruders.

A trespasser is anyone who enters premises without consent of the occupier or some privilege allowing him to enter thereupon. The question of consent is one of fact to be judged objectively. Any conduct that gives the impression that others may enter the premises on the part of the



occupier amounts to implied consent. In order to prevent implied consent the occupier must take steps to prevent intrusions although he must not go to the extremes.

Edwards v Railway Executive, a person who enters premises as a lawful visitor may become a trespasser by exceeding the limit of his permission overstaying his welcome or making improper use of the premises. **Bakaboineki**,

Pearson v Coleman Bros a little girl strayed from the circus to the zoo and got mauled by a lion. She was held to be a licensee.

An occupier, if he wishes to limit the scope of the permission to enter upon his premises should do so clearly. Under common law, the occupier's duty is only to prevent reckless and intentional harm being inflicted on the trespasser. The courts devised the doctrine of allurement in respect of children in order to allow plaintiffs of tender years to recover even when they exceeded the limits of their invitations.

Eventually the House of Lords adopted the standard of humane man with financial and other limitations to judge the standards of an occupier in respect of trespassers. This was devised in the case of **British Rylys Board v Herrington**. This was intended to be an intermediate position between the standard of a reasonable man and the old standard of recklessness on the part of the occupier. There was no duty to prevent trespass on the part of the occupier. Similarly the trespasser did not have to prove any likelihood of trespass in order to recover. Although the occupier had no duty to put any safeguards he had such a duty to trespassers of tender years.

In the UK the position of trespassers is subject to 1984 Occupier's Liability Act. The duty of common humanity propounded in the case of **Herrington** required the occupier to take reasonable steps to ensure that the trespasser is not injured. The occupier must be aware of the danger concerned. The occupier discharges his duty by giving sufficient warning of the presence of the danger in question. He should not do more. In determining the standard of care required of an occupier the same precautions are expected in respect of child trespassers as required in respect of lawful visitors.

The occupier still has the defence of *volenti non-fit injuria*. Where a trespasser is injured as a result of his own act as opposed to recklessness on the part of the occupier he cannot recover. The nature of trespass is also relevant in determining the nature of precautions to be expected of the occupier. He does not have any duty to take any precautions where the trespasser is criminal.

Robert Addie and Sons v Dumbreck 1929 AC 885

The duty of the occupier is in respect of the state of the premises and doesn't extend to liability for activities that may be carried out on the premises. However, it

may extend to activities that are part and parcel of the occupation-Herrington, *Videan v British Transport Commission*

In summary the duty of common humanity is to the effect that although the occupier was not obliged to institute checks for the presence of trespassers or dangers, a duty arose if on the facts of which he knew there was a likelihood of serious harm to the trespasser to make it inhuman to fail to take such steps. The duty takes into account the resources of the occupier. The duty is limited to personal injury.



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